AUTHENTICATED U.S. GOVERNMENT INFORMATION GPO

THE NATIONAL ARCHIVES LITTERA SCRIPTA MANET OF THE UNITED STATES 1934

FEDERAL REGISTER

VOLUME 22 NUMBER 228

Washington, Saturday, November 23, 1957

TITLE 3—THE PRESIDENT

EXECUTIVE ORDER 10740

CHANGE IN THE MEMBERSHIP OF THE PRESIDENT'S COUNCIL ON YOUTH FITNESS

By virtue of the authority vested in me as President of the United States, it is ordered as follows:

1. The President's Council on Youth Fitness shall hereafter be composed of the Secretary of the Interior, who shall be the Chairman of the Council, the Secretary of Defense, the Secretary of Agriculture, the Secretary of Labor, and the Secretary of Health, Education, and Welfare.

2. Section 1 of Executive Order No. 10673 of July 16, 1956, which established the President's Council on Youth Fitness and designated the members thereof, and which was amended by Executive Order No. 10704 of March 25, 1957, is further amended accordingly.

DWIGHT D. EISENHOWER

THE WHITE HOUSE,
November 21, 1957.

[F. R. Doc. 57-9796; Filed, Nov. 22, 1957; 11:31 a. m.]

TITLE 5—ADMINISTRATIVE PERSONNEL

Chapter I—Civil Service Commission

PART 2—FILLING COMPETITIVE POSITIONS

CITIZENSHIP

Section 2.104 (a) is amended as set out below.

§ 2.104 *Citizenship.* (a) No person shall be admitted to competitive examination unless he is a citizen of or owes permanent allegiance to the United States. No person shall be given appointment, except a temporary appointment in the absence of qualified citizens, unless he is a citizen of or owes permanent allegiance to the United States.

(R. S. 1753, sec. 2, 22 Stat. 403, as amended; 5 U. S. C. 631, 633)

UNITED STATES CIVIL SERVICE COMMISSION,
[SEAL] WM. C. HULL,
Executive Assistant.

[F. R. Doc. 57-9726; Filed, Nov. 22, 1957; 8:54 a. m.]

TITLE 7—AGRICULTURE

Chapter I—Agricultural Marketing Service (Standards, Inspections, Marketing Practices), Department of Agriculture

PART 52—PROCESSED FRUITS AND VEGETABLES, PROCESSED PRODUCTS THEREOF, AND CERTAIN OTHER PROCESSED FOOD PRODUCTS

SUBPART—UNITED STATES STANDARDS FOR GRADES OF CANNED TOMATOES AND OKRA AND CANNED OKRA AND TOMATOES [1]

On July 13, 1957, a notice of proposed rule making was published in the FEDERAL REGISTER (22 F. R. 5541) regarding a proposed issuance of the United States Standards for Grades of Canned Tomatoes and Okra and Canned Okra and Tomatoes.

After consideration of all relevant matters presented, including the proposal set forth in the aforesaid notice, the following United States Standards for Grades of Canned Tomatoes and Okra and Canned Okra and Tomatoes are hereby promulgated pursuant to the authority contained in the Agricultural Marketing Act of 1946 (60 Stat. 1087 et seq., as amended; 7 U. S. C. 1621 et seq.).

PRODUCT DESCRIPTION, PROPORTION OF INGREDIENTS, AND GRADES

Sec.
52.3421 Product description.
52.3422 Proportion of ingredients.
52.3423 Grades.

FILL OF CONTAINER

52.3424 Fill of container.

FACTORS OF QUALITY

52.3425 Ascertaining the grade.
52.3426 Ascertaining the rating for the factors which are scored.
52.3427 Color.
52.3428 Flavor.
52.3429 Defects.
52.3430 Character.

LOT INSPECTION AND CERTIFICATION

52.3431 Ascertaining the grade of a lot.

[1] Compliance with the provisions of these standards shall not excuse failure to comply with the provisions of the Federal Food, Drug, and Cosmetic Act.

(Continued on p. 9381)

CONTENTS

THE PRESIDENT

Executive Order — Page
Change in the membership of the President's Council on Youth Fitness — 9379

EXECUTIVE AGENCIES

Agricultural Marketing Service
Proposed rule making:
Milk; in western Colorado marketing area — 9394
Potatoes, Irish; grown in Maine — 9394
Rules and regulations:
Limitation of handling:
Lemons grown in California and Arizona — 9384
Oranges, navel; grown in Arizona and designated part of California — 9383
Tomatoes, canned; okra, canned okra and tomatoes; U. S. standards for grades — 9379

Agricultural Research Service
Rules and regulations:
Swine diseases spread through raw garbage; changes in areas quarantined — 9384

Agriculture Department
See Agricultural Marketing Service; Agricultural Research Service; Federal Crop Insurance Corporation.

Civil Aeronautics Administration
Rules and regulations:
Standard instrument approach procedures; alterations — 9386

Civil Service Commission
Rules and regulations:
Filling competitive positions; citizenship — 9379

Commerce Department
See Civil Aeronautics Administration; Federal Maritime Board.

Federal Communications Commission
Notices:
Hearings, etc.:
Atlantic Coast Broadcasting Corp. of Charleston (WTMA-TV) — 9404
Capitol Cab Co., Inc. — 9404
Ripley, Joseph M., Inc., et al. — 9404

FEDERAL REGISTER

Published daily, except Sundays, Mondays, and days following official Federal holidays, by the Federal Register Division, National Archives and Records Service, General Services Administration, pursuant to the authority contained in the Federal Register Act, approved July 26, 1935 (49 Stat. 500, as amended; 44 U. S. C., ch. 8B), under regulations prescribed by the Administrative Committee of the Federal Register, approved by the President. Distribution is made only by the Superintendent of Documents, Government Printing Office, Washington 25, D. C.

The FEDERAL REGISTER will be furnished by mail to subscribers, free of postage, for $1.50 per month or $15.00 per year, payable in advance. The charge for individual copies (minimum 15 cents) varies in proportion to the size of the issue. Remit check or money order, made payable to the Superintendent of Documents, directly to the Government Printing Office, Washington 25, D. C.

The regulatory material appearing herein is keyed to the CODE OF FEDERAL REGULATIONS, which is published, under 50 titles, pursuant to section 11 of the Federal Register Act, as amended August 5, 1953. The CODE OF FEDERAL REGULATIONS is sold by the Superintendent of Documents. Prices of books and pocket supplements vary.

There are no restrictions on the republication of material appearing in the FEDERAL REGISTER, or the CODE OF FEDERAL REGULATIONS.

Now Available

UNITED STATES GOVERNMENT ORGANIZATION MANUAL

1957–58 Edition

(Revised through June 1)

Published by the Federal Register Division, the National Archives and Records Service, General Services Administration

778 pages—$1.50 a copy

Order from Superintendent of Documents, United States Government Printing Office, Washington 25, D. C.

CONTENTS—Continued

Federal Communications Commission—Continued Page

Notices—Continued
Hearings, etc.—Continued
Santa Rosa Broadcasting Co. et al 9404
Segal, David M., et al 9404

Federal Crop Insurance Corporation

Rules and regulations:
Crop insurance; 1956 and succeeding crop years:
Barley 9383
Multiple crop 9383

CONTENTS—Continued

Federal Crop Insurance Corporation—Continued Page

Rules and regulations—Con.
Subsequent crop insurance:
Peach; 1958 9383
Wheat; 1957 and succeeding crop years 9382

Federal Maritime Board

Notices:
Calcutta/U. S. A. Conference (member lines); agreement filed for approval 9401

Federal Power Commission

Notices:
Town Gas Co. of Illinois et al.; order adopting initial decision in part; ordering certain severances and fixing date for oral argument in other actions 9400

Rules and regulations:
Statements and reports (schedules); submission of data by independent producers; revision of form 9385

Federal Trade Commission

Rules and regulations:
Cease and desist orders:
Surf Sales Co., Inc., et al 9390
Virginia Excelsior Mills, Inc., et al 9390

Foreign Assets Control

Notices:
Importation of certain merchandise directly from Hong Kong; junks, sampans 9402

General Services Administration

Notices:
Secretary of the Interior; delegations of authority to dispose of electric power transmission lines near:
New Mexico; Truth or Consequences 9405
Oregon; Coos Bay 9405

Interior Department

See Land Management Bureau.

Interstate Commerce Commission

Notices:
Fourth section applications for relief 9406

Land Management Bureau

Rules and regulations:
Public land orders:
Arizona 9393
Oregon 9393
Utah 9392
Wyoming 9392

Post Office Department

Rules and regulations:
Procedure before the Solicitor 9391

Securities and Exchange Commission

Notices:
American Natural Gas Co.; order instituting proceedings and for hearing and order of consolidation of proceedings 9406

CONTENTS—Continued

Small Business Administration Page

Notices:
Declaration of disaster areas:
Louisiana 9406
Texas 9406
Manager, Disaster Field Office, Lake Charles, Louisiana; delegation of authority relating to financial assistance functions 9406

Treasury Department

See also Foreign Assets Control.
New offerings:
Treasury bonds of 1974 9402
Treasury certificates of indebtedness of Series D–1958 9403
Treasury notes of Series C–1962 9403

CODIFICATION GUIDE

A numerical list of the parts of the Code of Federal Regulations affected by documents published in this issue. Proposed rules, as opposed to final actions, are identified as such.

Title 3 Page

Chapter II (Executive orders):
July 13, 1911, Power Site Reserve No. 190 (revoked in part by PLO 1553) 9392
10673 (amended by EO 10740) 9379
10704 (see EO 10740) 9379
10740 9379

Title 5

Chapter I:
Part 2 9379

Title 7

Chapter I:
Part 52 9379
Chapter IV:
Part 418 9382
Part 420 9383
Part 424 9383
Part 425 9383
Chapter IX:
Part 914 9383
Part 953 9384
Part 970 (proposed) 9394
Part 980 (proposed) 9394

Title 9

Chapter I:
Part 76 9384

Title 14

Chapter II:
Part 609 9386

Title 16

Chapter I:
Part 13 (2 documents) 9390

Title 18

Chapter I:
Part 260 9385

Title 39

Chapter I:
Part 202 9391

Title 43

Chapter I:
Appendix (Public land orders):
1187 (revoked in part by PLO 1554) 9392
1553 9392
1554 9392
1555 9393
1556 9393

SCORE SHEET

Sec.
52.3432 Score sheet for canned tomatoes and okra and canned okra and tomatoes.

AUTHORITY: §§ 52.3421 to 52.3432 issued under sec. 205, 60 Stat. 1090, as amended; 7 U. S. C. 1624.

PRODUCT DESCRIPTION, PROPORTION OF INGREDIENTS, AND GRADES

§ 52.3421 *Product description.* Canned tomatoes and okra and canned okra and tomatoes, hereinafter called canned tomatoes and okra, is the product prepared from clean, sound, properly matured tomatoes of red or reddish varieties which may be canned, and the clean, sound, succulent, immature pods of either the green or white varieties of the okra plant which may be processed. The tomatoes have been prepared by trimming, washing, sorting, peeling, and coring. The okra is prepared by trimming, washing, and sorting, and may be whole or cut into pieces. The tomatoes and okra may be packed with or without a small amount of tomato juice or tomato puree and with or without such other ingredients permissible under the provisions of the Federal Food, Drug, and Cosmetic Act in accordance with good commercial practice. The product is sufficiently processed by heat to assure preservation in hermetically sealed containers.

§ 52.3422 *Proportion of ingredients.* (a) Canned tomatoes and okra shall consist of 50 percent or more, by weight, of the tomato ingredient and not less than 12.5 percent nor more than 50 percent, by weight, of whole or cut okra.

(b) Canned okra and tomatoes shall consist of 50 percent or more, by weight, of whole or cut okra and not less than 12.5 percent nor more than 50 percent, by weight, of the tomato ingredient.

(c) Compliance with the requirement for proportions of ingredients will be determined by averaging the percent, by weight, of each ingredient in all of the containers in the sample: *Provided,* That any deviation from the prescribed proportion of ingredients in any one container is within the limits of good commercial practice.

§ 52.3423 *Grades.* (a) "U. S. Grade A" or "U. S. Fancy" is the quality of canned tomatoes and okra that possess a good flavor; that possess a good color; that are practically free from defects; that possess a good character; and that score not less than 85 points when scored in accordance with the scoring system outlined in this subpart.

(b) "U. S. Grade C" or "U. S. Standard" is the quality of canned tomatoes and okra that possess a fairly good flavor; that possess a fairly good color; that are fairly free from defects; that possess a fairly good character; and that score not less than 70 points when scored in accordance with the scoring system outlined in this subpart.

(c) "Substandard" is the quality of canned tomatoes and okra that fail to meet the requirements of U. S. Grade C or U. S. Standard.

FILL OF CONTAINER

§ 52.3424 *Fill of container.* The recommended fill of container for canned tomatoes and okra is not incorporated in the grades of the finished product since fill of container, as such, is not a factor of quality for the purpose of these grades. It is recommended that each container be filled as full of tomatoes and okra as practicable without impairment of quality and that the product shall fill the container to not less than 90 percent of its total capacity.

FACTORS OF QUALITY

§ 52.3425 *Ascertaining the grade*—(a) *General.* In addition to considering other requirements outlined in the standards the following quality factors are evaluated in ascertaining the grade of the product:

(1) *Factor not rated by score points.* (i) Proportion of ingredients.

(2) *Factors rated by score points.* The relative importance of each factor which is rated is expressed numerically on the scale of 100. The maximum number of points that may be given each such factor is:

Factors:	Points
Color	20
Flavor	20
Defects	30
Character	30
Total score	100

§ 52.3426 *Ascertaining the rating for the factors which are scored.* The essential variations within each factor which is scored are so described that the value may be ascertained for each factor and expressed numerically. The numerical range within each factor which is scored is inclusive (for example, "26 to 30 points" means 26, 27, 28, 29, or 30 points).

§ 52.3427 *Color*—(a) *(A) classification.* Canned tomatoes and okra that possess a good color may be given a score of 17 to 20 points. "Good color" means that the tomato ingredient possesses a reasonably good red color that is typical of reasonably well ripened tomatoes and that the okra possesses the color of young tender okra, which ingredients have been properly prepared and properly processed and meet the following additional requirements:

(1) *Tomatoes.* Not less than 50 percent, by weight, of the drained tomato ingredient possesses as much or more red than USDA Tomato Red Color Standard: *Provided,* That the color of not more than 10 percent, by weight, of the remaining portion of the drained tomato ingredient may be yellow and none is green in color.

(2) *Okra.* The outer surface of the okra pods or pieces of pods possesses a color that is typical of young tender okra.

(b) *(C) classification.* Canned tomatoes and okra that possess a fairly good color may be given a score of 14 to 16 points. Canned tomatoes and okra that fall into this classification shall not be graded above U. S. Grade C or U. S. Standard, regardless of the total score for the product (this is a limiting rule). "Fairly good color" means that the tomato ingredient possesses a fairly good red color typical of fairly well ripened tomatoes and that the okra possesses the color of reasonably tender okra, which ingredients have been properly prepared and properly processed.

(c) *(SStd.) classification.* Canned tomatoes and okra that fail to meet the requirements of paragraph (b) of this section may be given a score of 0 to 13 points and shall not be graded above Substandard, regardless of the total score for the product (this is a limiting rule).

§ 52.3428 *Flavor*—(a) *(A) classification.* Canned tomatoes and okra that possess a good flavor may be given a score of 17 to 20 points. "Good flavor" means that the product has a characteristic flavor and odor typical of well ripened tomatoes and young tender okra.

(b) *(C) classification.* Canned tomatoes and okra that possess a fairly good flavor may be given a score of 14 to 16 points. Canned tomatoes and okra that fall into this classification shall not be graded above U. S. Grade C or U. S. Standard, regardless of the total score for the product (this is a limiting rule). "Fairly good flavor" means that the product may be lacking in good flavor and odor but is free from objectionable flavors and objectionable odors of any kind.

(c) *(SStd.) classification.* Canned tomatoes and okra that fail to meet the requirements of paragraph (b) of this section may be given a score of 0 to 13 points and shall not be graded above Substandard, regardless of the total score for the product (this is a limiting rule).

§ 52.3429 *Defects*—(a) *General.* The factor of defects refers to the degree of freedom from sand, grit, or silt; harmless extraneous material; tomato peel; tomato core material; small pieces of okra; and from damaged or seriously damaged tomato or okra ingredient.

(1) "Sand, grit, or silt" means any particle of earthy material.

(2) "Harmless extraneous material" means any extraneous vegetable substance (including, but not limited to, a leaf, unattached stem, or portions thereof) that is harmless.

(3) "Damaged" means that the appearance and eating quality of the product is materially affected by the presence of scarred, discolored, or blemished tomato ingredient and/or scarred, poorly trimmed okra ingredient, and small pieces of pod less than ⅜ inch in length, or other damage.

(4) "Seriously damaged" means that the appearance and eating quality of the product is seriously affected by the presence of damaged ingredients.

(b) *(A) classification.* Canned tomatoes and okra that are practically free from defects may be given a score of 25 to 30 points. "Practically free from defects" means that the presence of sand, grit, or silt; harmless extraneous material; tomato peel; core material; and damaged and seriously damage ingredients, individually or collectively, does

not materially affect the appearance and eating quality of the product.

(c) *(C) classification.* Canned tomatoes and okra that are fairly free from defects may be given a score of 21 to 24 points. Canned tomatoes and okra that fall into this classification shall not be graded above U. S. Grade C or U. S. Standard, regardless of the total score for the product (this is a limiting rule). "Fairly free from defects" means that the presence of sand, grit, or silt; harmless extraneous material; tomato peel; core material; and damaged and seriously damaged ingredients, individually or collectively, does not seriously affect the appearance and eating quality of the product.

(d) *(SStd.) classification.* Canned tomatoes and okra that fail to meet the requirements of paragraph (c) of this section may be given a score of 0 to 20 points and shall not be graded above Substandard, regardless of the total score for the product (this is a limiting rule).

§ 52.3430 *Character*—(a) *General.* The factor of character refers to the texture and wholeness of the tomato ingredient and the tenderness and texture of the okra pods or pieces of pods.

(1) "Large piece of tomato ingredient" means a piece of tomato flesh that weighs not less than 1 ounce.

(2) "Small piece of tomato ingredient" means a piece of tomato flesh that weighs less than 1 ounce and that does not pass through a United States Standard ½-inch sieve.

(b) *(A) classification.* Canned tomatoes and okra that possess a good character may be given a score of 26 to 30 points. "Good character" means that the tomato ingredient is composed of whole, almost whole, or large pieces of tomato flesh and that the okra pods or pieces of pods are fleshy and tender and practically intact, that the okra seed is in the early stages of development, and that not more than 2 percent, by count, of the pods or pieces of pods may possess fibrous material which is materially objectionable upon eating.

(c) *(C) classification.* Canned tomatoes and okra that possess a fairly good character may be given a score of 21 to 25 points. Canned tomatoes and okra that fall into this classification on account of fibrous material shall not be graded above U. S. Grade C or U. S. Standard, regardless of the total score for the product (this is a partial limiting rule). "Fairly good character" means that the tomato ingredient may be predominantly in small pieces and that the okra pods and pieces of pods may have lost to a considerable extent their fleshy texture, that the units may be fairly tender but not excessively mushy, that the seed may be in the later stages of maturity but are not hard, and that not more than 5 percent, by count, of the pods or pieces of pods may possess fibrous material which is materially objectionable upon eating.

(d) *(SStd.) classification.* Canned tomatoes and okra that fail to meet the requirements of paragraph (c) of this section with respect to fibrous material may be given a score of 0 to 20 points and shall not be graded above Substandard, regardless of the total score for the product (this is a partial limiting rule).

LOT INSPECTION AND CERTIFICATION

§ 52.3431 *Ascertaining the grade of a lot.* The grade of a lot of canned tomatoes and okra covered by these standards is determined by the procedures set forth in the Regulations Governing Inspection and Certification of Processed Fruits and Vegetables, Processed Products Thereof, and Certain Other Processed Food Products (§§ 52.1 to 52.87).

SCORE SHEET

§ 52.3432 *Score sheet for canned tomatoes and okra and canned okra and tomatoes.*

Size and kind of container	----
Container mark or identification	----
Label	----
Net weight (ounces)	----
Vacuum readings (inches)	----
Proportion of ingredients, —% tomatoes, —% okra	----
Whole or cut okra	----

Factors		Score points	
Color	20	(A)	17–20
		(C)	[1] 14–16
		(SStd.)	[1] 0–13
Flavor	20	(A)	17–20
		(C)	[1] 14–16
		(SStd.)	[1] 0–13
Defects	30	(A)	25–30
		(C)	[1] 21–24
		SStd.)	[1] 0–20
Character	30	(A)	26–30
		(C)	[2] 21–25
		(SStd.)	[2] 0–20
Total score	100		
Grade			

[1] Indicates limiting rule.
[2] Indicates partial limiting rule.

The United States Standards for Grades of Canned Tomatoes and Okra and Canned Okra and Tomatoes (which is the first issue) contained in this subpart shall become effective 30 days after publication hereof in the FEDERAL REGISTER.

Dated: November 20, 1957.

[SEAL] ROY W. LENNARTSON,
Deputy Administrator,
Marketing Services.

[F. R. Doc. 57-9709; Filed, Nov. 22, 1957; 8:46 a. m.]

Chapter IV—Federal Crop Insurance Corporation, Department of Agriculture

PART 418—WHEAT CROP INSURANCE

SUBPART—REGULATIONS FOR THE 1957 AND SUCCEEDING CROP YEARS

APPENDIX

Pursuant to authority contained in paragraph (a) of § 418.1 of the above-identified regulations, as amended (20 F. R. 10015; 21 FR. 5164, 9397; 22 F. R. 7018, 8473), the following counties have been designated for insurance for the 1958 crop year.

California:
Kern.
Los Angeles.
Monterey.
San Luis Obispo.
Tulare.
Colorado:
Adams.
Arapahoe.
Cheyenne.
Elbert.
Kit Carson.
Larimer.
Lincoln.
Logan.
Phillips.
Sedgwick.
Washington.
Yuma.
Idaho:
Benewah.
Bonneville.
Camas.
Cassia.
Idaho.
Kootenai.
Latah.
Lewis.
Nez Perce.
Oneida.
Power.
Teton.
Illinois:
Adams.
Bond.
Christian.
Clinton.
Effingham.
Fayette.
Greene.
Jersey.
Macoupin.
Madison.
Marion.
Mason.
Monroe.
Montgomery.
Pike.
St. Clair.
Sangamon.
Schuyler.
Scott.
Shelby.
Vermilion.
Washington.
Indiana:
Allen.
Boone.
Clinton.
Decatur.
De Kalb.
Howard.
Johnson.
Kosciusko.
Madison.
Montgomery.
Noble.
Pulaski.
Randolph.
Ripley.
Rush.
Shelby.
Sullivan.
Wayne.
Whitley.
Kansas:
Atchison.
Barber.
Barton.
Cheyenne.
Clark.
Clay.
Cloud.
Cowley.
Decatur.
Dickinson.
Edwards.
Ellis.
Ellsworth.
Finney.
Ford.
KANSAS—Continued
Gove.
Graham.
Grant.
Gray.
Greeley.
Hamilton.
Harper.
Harvey.
Haskell.
Hodgeman.
Kearny.
Kingman.
Kiowa.
Lane.
Lincoln.
Logan.
McPherson.
Marion.
Marshall.
Meade.
Mitchell.
Morris.
Nemaha.
Ness.
Norton.
Osborne.
Ottawa.
Pawnee.
Phillips.
Pratt.
Rawlins.
Reno.
Republic.
Rice.
Rooks.
Rush.
Russell.
Saline.
Scott.
Sedgwick.
Seward.
Sheridan.
Sherman.
Smith.
Stafford.
Staunton.
Stevens.
Sumner.
Thomas.
Trego.
Wallace.
Washington.
Wichita.
Maryland:
Kent.
Michigan:
Calhoun.
Clinton.
Eaton.
Hillsdale.
Huron.
Ingham.
Ionia.
Kalamazoo.
Lenawee.
Monroe.
Saginaw.
St. Clair.
Sanilac.
Shiawassee.
Missouri:
Bates.
Buchanan.
Carroll.
Cass.
Charlton.
Cooper.
Franklin.
Henry.
Holt.
Jasper.
Lafayette.
Lawrence.
Marion.
Pettis.
Pike.
St. Charles.
Saline.
Vernon.

Montana:
Blaine.
Cascade.
Chouteau.
Fergus.
Hill.
Judith Basin.
Liberty.
Petroleum.
Pondera.
Teton.
Yellowstone.
Nebraska:
Banner.
Box Butte.
Butler.
Chase.
Cheyenne.
Dawes.
Deuel.
Frontier.
Furnas.
Gage.
Garden.
Gosper.
Hamilton.
Harlan.
Hayes.
Hitchcock.
Jefferson.
Keith.
Kimball.
Lancaster.
Morrill.
Perkins.
Phelps.
Red Willow.
Richardson.
Saline.
Saunders.
Seward.
Thayer.
York.
North Carolina:
Cleveland.
Lincoln.
Mecklenburg.
Rutherford.
Ohio:
Allen.
Auglaize.
Clinton.
Erie.
Fayette.
Franklin.
Greene.
Hardin.
Henry.
Highland.
Knox.
Marion.
Mercer.
Montgomery.
Morrow.
Pickaway.
Preble.
Putnam.
Sandusky.
Seneca.
Stark.
Tuscarawas.
Williams.
Oklahoma:
Alfalfa.
Beckham.
Blaine.
Oklahoma—Con.
Caddo.
Canadian.
Comanche.
Cotton.
Custer.
Dewey.
Ellis.
Garfield.
Grant.
Greer.
Harmon.
Harper.
Kay.
Kingfisher.
Kiowa.
Major.
Noble.
Texas.
Tillman.
Washita.
Woods.
Oregon:
Baker.
Gilliam.
Jefferson.
Morrow.
Sherman.
Umatilla.
Union.
Wallowa.
Wasco.
Pennsylvania:
Chester.
Lancaster.
South Dakota:
Bennett.
Jones.
Lyman.
Mellette.
Tripp.
Texas:
Baylor.
Castro.
Collin.
Cooke.
Denton.
Floyd.
Foard.
Gray.
Grayson.
Hale.
Jones.
Lipscomb.
Potter.
Wilbarger.
Utah:
Box Elder.
Cache.
Washington:
Adams.
Asotin.
Benton.
Columbia.
Douglas.
Franklin.
Grant.
Klickitat.
Lincoln.
Spokane.
Walla Walla.
Whitman.
Wyoming:
Goshen.
Laramie.
Platte.

(Secs. 506, 516, 52 Stat. 73, as amended, 77, as amended; 7 U. S. C. 1506, 1516. Interpret or apply secs. 507–509, 52 Stat. 73–75, as amended; 7 U. S. C. 1507–1509)

[SEAL] F. N. McCARTNEY,
Manager,
Federal Crop Insurance Corporation.

[F. R. Doc. 57-9425; Filed, Nov. 22, 1957; 8:45 a. m.]

PART 420—MULTIPLE CROP INSURANCE

SUBPART—REGULATIONS FOR THE 1956 AND SUCCEEDING CROP YEARS

APPENDIX

Pursuant to authority contained in paragraph (a) of § 420.1 of the above-identified regulations, as amended (20 F. R. 3526, 5765, 8071; 21 F. R. 49, 1381, 4473, 5883, 6858, 7314, 7787 8534, 9397; 22 F. R. 2076, 2796, 3284, 5855, 7019), the following counties have been designated for insurance for the 1958 crop year.

Arkansas:
Arkansas.
Colorado:
Morgan.
Weld.
Illinois:
Bond.
Christian.
Clinton.
Effingham.
Fayette.
Jasper.
Jersey.
Madison.
Morgan.
Pike.
Schuyler.
Scott.
Indiana:
Boone.
Delaware.
Jackson.
Marshall.
Ripley.
Shelby.
Sullivan.
Wells.
Whitley.
Iowa:
Delaware.
Emmet.
Howard.
Humboldt.
Ida.
Tama.
Union.
Warren.
Winnebago.
Worth.
Kansas:
Bourbon.
Cherokee.
Franklin.
Linn.
Montgomery.
Louisiana:
St. Martin.
Vermilion.
Maryland:
Kent.
Michigan:
Gratiot.
Jackson.
Monroe.
Minnesota:
Big Stone.
Chippewa.
Dakota.
Goodhue.
Kandiyohi.
Lac Qui Parle.
McLeod.
Polk, East.
Minnesota—Con.
Pope.
Stearns.
Stevens.
Swift.
Yellow Medicine.
Missouri:
Audrain.
Callaway.
Carroll.
Cass.
Cooper.
Franklin.
Johnson.
St. Charles.
Nebraska:
Antelope.
Pawnee.
Washington.
North Dakota:
Barnes.
Dickey.
Grand Forks.
LaMoure.
Pierce.
Ransom.
Richland.
Sargent.
Steele.
Ohio:
Hancock.
Paulding.
Sandusky.
Union.
Van Wert.
Wayne.
Williams.
Oregon:
Linn.
Malheur.
Pennsylvania:
Chester.
Lebanon.
South Dakota:
Bon Homme.
Clay.
Day.
Deuel.
Grant.
Hamlin.
Hutchinson.
Kingsbury.
Lake.
McCook.
Miner.
Tennessee:
Franklin.
Obion.
Weakley.
Wisconsin:
Fond du Lac.
Wyoming:
Platte.

(Secs. 506, 516, 52 Stat. 73, as amended, 77, as amended; 7 U. S. C. 1506, 1516. Interpret or apply Secs. 507–509, 52 Stat. 73–75, as amended; 7 U. S. C. 1507–1509)

[SEAL] F. N. McCARTNEY,
Manager,
Federal Crop Insurance Corporation.

[F. R. Doc. 57-9426; Filed, Nov. 22, 1957; 8:45 a. m.]

PART 424—BARLEY CROP INSURANCE

SUBPART—REGULATIONS FOR THE 1956 AND SUCCEEDING CROP YEARS

APPENDIX

Pursuant to authority contained in paragraph (a) of § 424.1 of the above-identified regulations, as amended (19 F. R. 9315; 20 F. R. 7637, 10023; 21 F. R. 1004, 5164, 7323; 22 F. R. 7020), the following counties have been designated for insurance for the 1958 crop year.

California:
Monterey.
San Luis Obispo.
Idaho:
Idaho.
Lewis.
Oregon:
Morrow.
Sherman.
Umatilla.
Washington:
Walla Walla.
Whitman.

(Secs. 506, 516, 52 Stat. 73, as amended, 77, as amended; 7 U. S. C. 1506, 1516. Interpret or apply secs. 507–509, 52 Stat. 73–75, as amended; 7 U. S. C. 1507–1509)

[SEAL] F. N. McCARTNEY,
Manager,
Federal Crop Insurance Corporation.

[F. R. Doc. 57-9427; Filed, Nov. 22, 1957; 8:45 a. m.]

PART 425—PEACH CROP INSURANCE

SUBPART—REGULATIONS FOR CONTRACTS FOR THE 1958 CROP YEAR

APPENDIX

Pursuant to authority contained in paragraph (a) of § 425.21 of the above-identified regulations (22 F. R. 8473), the following county has been designated for insurance for the 1958 crop year.

South Carolina:
Spartanburg.

(Secs. 506, 516, 52 Stat. 73, as amended, 77, as amended; 7 U. S. C. 1506, 1516. Interpret or apply secs. 507–509, 52 Stat. 73–75, as amended; 7 U. S. C. 1507–1509)

[SEAL] F. N. McCARTNEY,
Manager,
Federal Crop Insurance Corporation.

[F. R. Doc. 57-9428; Filed, Nov. 22, 1957; 8:45 a. m.]

Chapter IX—Agricultural Marketing Service (Marketing Agreements and Orders), Department of Agriculture

[Navel Orange Reg. 123]

PART 914—NAVEL ORANGES GROWN IN ARIZONA AND DESIGNATED PART OF CALIFORNIA

LIMITATION OF HANDLING

§ 914.423 *Navel Orange Regulation 123*—(a) *Findings.* (1) Pursuant to the marketing agreement, as amended, and Order No. 14, as amended (7 CFR Part 914), regulating the handling of navel oranges grown in Arizona and designated part of California, effective under the applicable provisions of the Agricultural Marketing Agreement Act of 1937, as amended (7 U. S. C. 601 et seq.; 68 Stat. 906, 1047), and upon the basis of the recommendation and information sub-

mitted by the Navel Orange Administrative Committee, established under the said amended marketing agreement and order, and upon other available information, it is hereby found that the limitation of handling of such navel oranges as hereinafter provided will tend to effectuate the declared policy of the act.

(2) It is hereby further found that it is impracticable and contrary to the public interest to give preliminary notice, engage in public rule-making procedure, and postpone the effective date of this section until 30 days after publication hereof in the FEDERAL REGISTER (60 Stat. 237; 5 U. S. C. 1001 et seq.) because the time intervening between the date when information upon which this section is based became available and the time when this section must become effective in order to effectuate the declared policy of the act is insufficient, and a reasonable time is permitted, under the circumstances, for preparation for such effective time; and good cause exists for making the provisions hereof effective as hereinafter set forth. The Committee held an open meeting during the current week, after giving due notice thereof, to consider supply and market conditions for navel oranges and the need for regulation; interested persons were afforded an opportunity to submit information and views at this meeting; the recommendation and supporting information for regulation during the period specified herein were promptly submitted to the Department after such meeting was held; the provisions of this section, including its effective time, are identical with the aforesaid recommendation of the committee, and information concerning such provisions and effective time has been disseminated among handlers of such navel oranges; it is necessary, in order to effectuate the declared policy of the act, to make this section effective during the period herein specified; and compliance with this section will not require any special preparation on the part of persons subject hereto which cannot be completed on or before the effective date hereof. Such committee meeting was held on November 21, 1957.

(b) *Order.* (1) The respective quantities of navel oranges grown in Arizona and designated part of California which may be handled during the period beginning at 12:01 a. m., P. s. t., November 24, 1957, and ending at 12:01 a. m., P. s. t., December 1, 1957, are hereby fixed as follows:

(i) District 1: 554,400 cartons;

(ii) District 2: Unlimited movement;

(iii) District 3: 92,400 cartons;

(iv) District 4: 23,100 cartons.

(2) All navel oranges handled during the period specified in this section are subject also to all applicable size restrictions which are in effect pursuant to this part during such period.

(3) As used in this section, "handled," "District 1," "District 2," "District 3," "District 4," and "carton" have the same meaning as when used in said amended marketing agreement and order.

(Sec. 5, 49 Stat. 853, as amended; 7 U. S. C. 608c)

Dated: November 22, 1957.

[SEAL] S. R. SMITH,
Director, Fruit and Vegetable Division, Agricultural Marketing Service.

[F. R. Doc. 57-9792; Filed, Nov. 22, 1957; 11:10 a. m.]

[Lemon Reg. 714]

PART 953—LEMONS GROWN IN CALIFORNIA AND ARIZONA

LIMITATION OF HANDLING

§ 953.821 *Lemon Regulation 714*—(a) *Findings.* (1) Pursuant to the marketing agreement, as amended, and Order No. 53, as amended (7 CFR Part 953), regulating the handling of lemons grown in California and Arizona, effective under the applicable provisions of the Agricultural Marketing Agreement Act of 1937, as amended (7 U. S. C. 601 et seq.; 68 Stat. 906, 1047), and upon the basis of the recommendation and information submitted by the Lemon Administrative Committee, established under the said amended marketing agreement and order, and upon other available information, it is hereby found that the limitation of handling of such lemons as hereinafter provided will tend to effectuate the declared policy of the act.

(2) It is hereby further found that it is impracticable and contrary to the public interest to give preliminary notice, engage in public rule-making procedure, and postpone the effective date of this section until 30 days after publication hereof in the FEDERAL REGISTER (60 Stat. 237; 5 U. S. C. 1001 et seq.) because the time intervening between the date when information upon which this section is based becomes available and the time when this section must become effective in order to effectuate the declared policy of the act is insufficient, and a reasonable time is permitted, under the circumstances, for preparation for such effective time; and good cause exists for making the provisions hereof effective as hereinafter set forth. The Committee held an open meeting during the current week, after giving due notice thereof, to consider supply and market conditions for lemons and the need for regulation; interested persons were afforded an opportunity to submit information and views at this meeting; the recommendation and supporting information for regulation during the period specified herein were promptly submitted to the Department after such meeting was held; the provisions of this section, including its effective time, are identical with the aforesaid recommendation of the committee, and information concerning such provisions and effective time has been disseminated among handlers of such lemons; it is necessary, in order to effectuate the declared policy of the act, to make this section effective during the period herein specified; and compliance with this section will not require any special preparation on the part of persons subject hereto which cannot be completed on or before the effective date hereof. Such committee meeting was held on November 20, 1957.

(b) *Order.* (1) The respective quantities of lemons grown in California and Arizona which may be handled during the period beginning at 12:01 a. m., P. s. t., November 24, 1957, and ending at 12:01 a. m., P. s. t., December 1, 1957, are hereby fixed as follows:

(i) District 1: 23,250 cartons;

(ii) District 2: 172,050 cartons;

(iii) District 3: 27,900 cartons.

(2) As used in this section, "handled," "District 1," "District 2," "District 3," and "carton" have the same meaning as when used in the said amended marketing agreement and order.

(Sec. 5, 49 Stat. 753, as amended; 7 U. S. C. 608c)

Dated: November 21, 1957.

[SEAL] S. R. SMITH,
Director, Fruit and Vegetable Division, Agricultural Marketing Service.

[F. R. Doc. 57-9784; Filed, Nov. 22, 1957; 8:57 a. m.]

TITLE 9—ANIMALS AND ANIMAL PRODUCTS

Chapter I—Agricultural Research Service, Department of Agriculture

Subchapter C—Interstate Transportation of Animals and Poultry

[B. A. I. Order 383, Revised, Amdt. 96]

PART 76—HOG CHOLERA, SWINE PLAGUE, AND OTHER COMMUNICABLE SWINE DISEASES

SUBPART B—SWINE DISEASES SPREAD THROUGH RAW GARBAGE

CHANGES IN AREAS QUARANTINED

Pursuant to the provisions of sections 1 and 3 of the act of March 3, 1905, as amended (21 U. S. C. 123, 125), sections 1 and 2 of the act of February 2, 1903, as amended (21 U. S. C. 111–113, 120), and section 7 of the act of May 29, 1884, as amended (21 U. S. C. 117), § 76.27, as amended, Subpart B, Part 76, Title 9, Code of Federal Regulations (22 F. R. 3005, 4377, 6910, 7223, 8929), which quarantines certain areas because of vesicular exanthema, a contagious, infectious, and communicable disease of swine, is hereby further amended by adding a new subdivision (vi) to subparagraph (11) of paragraph (d), relating to Ocean County in New Jersey, to read:

(vi) that part of Union Township lying west of the Garden State Parkway, north of the Union-Stafford Township line, northeast of the Burlington County line, south of the Lacey-Union Township line, and southwest of Ocean-Union Township line and that part of Stafford Township lying southwest of U. S. Highway No. 72, west of U. S. Highway No. 9, northeast of the Stafford-Eagleswood Township line, east of the Little Egg Harbor-Stafford Township line, and south of the Union-Stafford Township line.

Effective Date. The foregoing amendment shall become effective upon issuance.

The amendment excludes a certain area in New Jersey from the areas heretofore quarantined because of vesicular exanthema. Hereafter, the restrictions pertaining to the interstate movement of swine, and carcasses, parts and offal of swine, from or through quarantined areas, contained in 9 CFR, 1956 Supp., Part 76, Subpart B, as amended, will not apply to such area. However, the restrictions pertaining to such movement from nonquarantined areas, contained in said Subpart B, as amended, will apply thereto.

The amendment relieves certain restrictions presently imposed, and must be made effective immediately to be of maximum benefit to persons subject to the restrictions which are relieved. Accordingly, under Section 4 of the Administrative Procedure Act (5 U. S. C. 1003), it is found upon good cause that notice and other public procedure with respect to the amendment are impracticable and contrary to the public interest, and the amendment may be made effective less than 30 days after publication in the FEDERAL REGISTER.

(Sec. 7, 23 Stat. 32, as amended, secs. 1, 2, 32 Stat. 791–792, as amended, secs. 1, 3, 33 Stat. 1264, as amended, 1265, as amended; 21 U. S. C. 111–113, 117, 120, 123, 125)

Done at Washington, D. C., this 19th day of November 1957.

[SEAL] M. R. CLARKSON,
Acting Administrator,
Agricultural Research Service.

[F. R. Doc. 57-9711; Filed, Nov. 22, 1957; 8:47 a. m.]

TITLE 18—CONSERVATION OF POWER

Chapter I—Federal Power Commission

[Order 198; Docket No. R-162]

PART 260—STATEMENTS AND REPORTS (SCHEDULES)

SUBMISSION OF DATA BY INDEPENDENT PRODUCERS; REVISION OF FORM

In this proceeding the Commission has under consideration the amendment of Part 260, entitled "Statements and Reports (Schedules)" of Subchapter G, Approved Forms, Natural Gas Act, by the revision of § 260.5 so as to prescribe FPC Form No. 301–1956, Independent Producers Report—1956.[1]

General public notice of this proposed rulemaking was given by publication in the FEDERAL REGISTER on April 24, 1957, (22 F. R. 2882) and mailing notices to interested parties, including State and Federal regulatory agencies. The notice invited the submission by interested persons of views and comments in writing concerning the proposed form. Many comments and suggestions were received, some of which were constructive and have been incorporated in the form hereinafter prescribed. On September 5, 1957, the Commission heard oral argument by those representatives of the industry who had raised certain issues asserted to be involved in the method of adoption and the content of the form proposed in the notice.

Objectors claimed, among other things, that the notice given was legally inadequate and that the form (1) would cause an excessive burden of work and expense, (2) is illegal in that it requires the filing of information with respect to matters over which the Commission has no jurisdiction, (3) would make public information that should not be divulged, and (4) requires information that could serve no useful purpose in the Commission's regulation of producers. The Commission has given careful consideration to all of the comments, suggestions, and objections, both written and oral, and has made modifications in the form which are believed to meet the objections to the extent they have substance. These modifications are summarized generally as follows:

1. Parts I, II, and III have been changed to permit the reporting of gross sales and gross revenues on an estimated basis if the producer keeps its records on a net basis. (See Part I, item 2; Part II, items 5 and 7 (a); and Part III, item 3).

2. Parts I, II, and III have been changed to permit reporting on a calendar year basis or a fiscal year basis at the option of the producer.

3. Parts I, II, and III were changed to require that those parts be completed in their entirety only by producers whose total gross sales under all FPC rate schedules in 1956 were in excess of 2 million Mcf. Other producers need complete a portion of Part I only. The corresponding figure in the original draft of the form was 250,000 Mcf. (See Part I, item 1; Part II, item 1; and Part III, item 1).

4. Part IV has been changed by striking out paragraphs (a), (b), and (c) and modifying (d) so as to require the filing with the Commission of a report to stockholders only by those producers whose sales for the year exceeded 2 million Mcf.

5. The verification form has been changed to an attestation without any requirement for an oath.

Analysis of the data supplied by form 301, for the year ended December 31, 1955, indicated certain deficiencies in that form and its extreme brevity excluded data since proven necessary to properly regulate the producers in accordance with the Natural Gas Act. Specifically, the 1955 report failed to make available to the Commission reliable data respecting (1) the total volume of sales under each individual contract including the sales of all parties to that rate schedule or contract; (2) the interstate sales of independent producers for which the independent producer made no separate filing; (3) information which would permit the Commission to identify duplicate rate filings; and (4) certain financial information. The report for 1956 is designed to supply the needed information.

The form hereinafter prescribed differs from the 1955 form in two principal aspects. It requires more detailed information to supply the deficiencies pointed out in (1), (2), and (3) above and it requires brief financial information by producers whose sales for the year under filed rate schedules exceeded 2 million Mcf. That effective regulation is impossible without such information is recognized by regulatory statutes, including the Natural Gas Act, and particularly the accounting and reporting provisions thereof. The Commission's regulations exempt producers from compliance with the comprehensive accounting and reporting requirements of the Natural Gas Act. This exemption is still continued, but the Commission's experience in the regulation of producers convinces it of the necessity of at least the minimum financial data called for in form 301–1956 in order that the regulatory responsibilities of the Commission may be viewed in relation to the relative importance and financial effects of such regulation on the regulated producers.

For the reasons set forth above the Commission finds:

The amendment hereinafter adopted including the form therein prescribed is necessary and appropriate to carry out the provisions of the Natural Gas Act.

The Commission, acting pursuant to authority granted by sections 10 and 16 of the Natural Gas Act (52 Stat. 826, 830; 15 U. S. C. 717i, 717o) orders:

(A) Part 260 of the Commission's Regulations entitled "Statements and Reports (Schedules)" of Subchapter G, Approved Forms, Natural Gas Act (18 CFR, Part 260) is amended by amending § 260.5 to read as follows:

§ 260.5 *Form No. 301–1956, Statement of Sales and Revenues of Independent Producers.* (a) FPC Form No. 301–1956, Independent Producers Report—1956, being a statement of sales of natural gas made during the calendar year 1956 (or most recent established fiscal year) under rate schedules filed with the Commission pursuant to §§ 154.92 and 154.94 of this chapter, including the instructions and schedules therein contained, be and the same hereby is approved.

(b) Each independent producer as defined in § 154.91 of this chapter who had a rate schedule on file with the Commission on December 31, 1956, shall file on or before December 31, 1957, two copies of such FPC form No. 301–1956.

(B) The amendment to Part 260 herein prescribed is hereby made effective upon the issuance of this order.

(Sec. 16, 52 Stat. 830; 15 U. S. C. 717o)

Issued: November 19, 1957.

By the Commission (Commissioner Digby dissenting).

[SEAL] JOSEPH H. GUTRIDE,
Secretary.

[F. R. Doc. 57-9712; Filed, Nov. 22, 1957; 8:48 a. m.]

[1] Filed as part of the original document.

TITLE 14—CIVIL AVIATION

Chapter II—Civil Aeronautics Administration, Department of Commerce

[Amdt. 44]

PART 609—STANDARD INSTRUMENT APPROACH PROCEDURES

PROCEDURE ALTERATIONS

The standard instrument approach procedures appearing hereinafter are adopted to become effective when indicated in order to promote safety. Compliance with the notice, procedures, and effective date provisions of section 4 of the Administrative Procedure Act would be impracticable and contrary to the public interest, and therefore is not required.

Part 609 is amended as follows:

NOTE: Where the general classification (L/MFR, ADF, VOR, TerVOR, VOR/DME, ILS, or RADAR), location, and procedure number (if any) of any procedure in the amendments which follow, are identical with an existing procedure, that procedure is to be substituted for the existing one, as of the effective date given, to the extent that it differs from the existing procedure; where a procedure is cancelled, the existing procedure is revoked; new procedures are to be placed in appropriate alphabetical sequence within the section amended.

1. The low or medium frequency range procedures prescribed in § 609.100 (a) are amended to read in part:

LFR STANDARD INSTRUMENT APPROACH PROCEDURE

Bearings, headings, courses and radials are magnetic. Elevations and altitudes are in feet MSL. Ceilings are in feet above airport elevation. Distances are in nautical miles unless otherwise indicated, except visibilities which are in statute miles.

If an instrument approach procedure of the above type is conducted at the below named airport, it shall be in accordance with the following instrument approach procedure, unless an approach is conducted in accordance with a different procedure for such airport authorized by the Administrator of Civil Aeronautics. Initial approaches shall be made over specified routes. Minimum altitudes shall correspond with those established for en route operation in the particular area or as set forth below.

Transition				Ceiling and visibility minimums			
From—	To—	Course and distance	Minimum altitude (feet)	Condition	2-engine or less		More than 2-engine, more than 65 knots
					65 knots or less	More than 65 knots	
PROCEDURE CANCELLED, EFFECTIVE 14 DEC. 57, DUE DECOMMISSIONING OF FINAL APPROACH FIX.							
City, Amarillo; State, Tex.; Airport Name, Air Terminal; Elev., 3604'; Fac. Class, SBRAZ; Ident., AMA; Procedure No. 2, Amdt. 9; Eff. Date, 2 Mar. 57; Sup. Amdt. No. 8 Dated, 14 Jan. 56							
Beaumont VOR	BUJ-LFR	Direct	1200	T-dn C-dn S-dn-16 A-dn	300-1 400-1 400-1 800-2	300-1 500-1 400-1 800-2	200-½ 500-1½ 400-1 800-2
Procedure turn W side N crs, 340 Outbnd, 160 Inbnd, 1800' within 10 mi. Beyond 10 mi. NA. Minimum altitude over facility on final approach crs, 1000'. Crs and distance, facility to airport, 160—3.1. If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 3.1 mi, climb to 1400' on S crs within 20 mi. CAUTION: 787' msl radio antenna 4.26 mi E of final approach crs.							
City, Beaumont; State, Tex; Airport Name, Jefferson County; Elev., 15'; Fac. Class, SBMRLZ; Ident, BUJ; Procedure No. 1, Amdt. 7; Eff. Date, 14 Dec. 57; Sup. Amdt No. 6; Dated, 14 May 55							
Greenwood VOR	GRW-LFR	Direct	1400	T-dn C-dn A-dn	300-1 500-1 800-2	300-1 500-1 800-2	200-½ 500-1½ 800-2
Procedure turn N side E crs, 085 Outbnd, 265 Inbnd, 1800' within 10 mi. Beyond 10 mi. NA. Minimum altitude over facility on final approach crs, 1300'. Crs and distance, facility to airport, 266—1.6. If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 1.6 mi, climb to 1400' on W crs within 20 mi. NOTE: Not approved for ADF approach.							
City, Greenwood; State, Miss.; Airport Name, Municipal; Elev., 129'; Fac. Class, BMLZ; Ident., GRW; Procedure No. 1, Amdt. 7; Eff. Date, 14 Dec. 57; Sup. Amdt. No. 6; Dated, 4 June 55							
Midland VOR	MAF-LFR	Direct	4200	T-dn C-dn S-dn-4 A-dn	300-1 400-1 400-1 800-2	300-1 500-1 400-1 800-2	*200-½ 500-1½ 400-1 800-2
AIR CARRIER NOTE: 300-1 required on runways 16L and 34R. Procedure turn S side of SW crs, 229 Outbnd, 049 Inbnd, 4400' within 10 miles. Beyond 10 mi NA. Minimum altitude over facility on final approach crs, 3800'. Crs and distance, facility to airport, 049-3.3. If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 3.3 miles, climb to 4000' on SE crs of LFR within 20 miles. NOTE: This procedure not approved for ADF approach.							
City, Midland; State, Tex.; Airport Name, Air Terminal; Elev, 2867'; Fac. Class, BMRLZ; Ident., MAF; Procedure No. 1, Amdt. 8; Eff. Date, 14 Dec. 57; Sup. Amdt. No. 7; Dated, 16 July 55.							
Bayou St. John FM New Orleans VOR Madisonville FM	MSY-LFR (Final) MSY-LFR MSY-LFR	Direct Direct Direct	900 1500 1400	T-dn C-dn S-dn-28* A-dn	300-1 400-1 400-1 800-2	300-1 500-1 400-1 800-2	200-½ 500-1½ 400-1 800-2
*580 FPM required at 105 K. Procedure turn N side E crs, 073 Outbnd, 253 Inbnd, 1500' within 10 miles. Beyond 10 miles NA. Minimum altitude over facility on final approach crs, 900'. Crs and distance, facility to airport, 267—2.7. If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 2.7 miles, climb to 1400' on W crs within 20 miles, or when directed by ATC, (1) turn left, climb to 1500' on S crs within 20 miles, or (2)-turn right, climb to 1400' on N crs within 20 miles. CAUTION: 409' WWL Radio Antenna located 2.3 miles N of airport. 452' electric transmission towers located 3.4 miles S of LFR or 4.3 miles SE of airport.							
City, New Orleans; State, La.; Airport Name, Moisant Int'l.; Elev., 3'; Fac. Class, SBRAZ; Ident., MSY; Procedure No. 1, Amdt. 8; Eff. Date, 14 Dec. 57; Sup. Amdt. No. 7; Dated, 13 July 57							

LFR STANDARD INSTRUMENT APPROACH PROCEDURE—Continued

Transition				Ceiling and visibility minimums			
From—	To—	Course and distance	Minimum altitude (feet)	Condition	2-engine or less		More than 2-engine, more than 65 knots
					65 knots or less	More than 65 knots	
Madisonville FM	MSY-LFR	Direct	1400	T-dn	300-1	300-1	200-½
New Orleans VOR	MSY-LFR	Direct	1500	C-dn	400-1	500-1	500-1½
Int 360 brng to La Place RBn and W crs MSY LFR.	LOM (Final)	Direct	900	S-dn-10	400-1	400-1	400-1
				A-dn	800-2	800-2	800-2

Procedure turn S side of W crs, 272 Outbnd, 092 Inbnd, 1400' within 5 mi of LOM. Beyond 5 mi NA.
Minimum altitude over facility on final approach crs, 900' over LOM.
Crs and distance, facility to airport 092—3.4 from LOM.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 3.4 miles of LOM, climb to 1500' on E crs within 20 miles, or when directed by ATC, (1) turn right, climb to 1500' on S crs within 20 miles, or (2) turn left, climb to 1400' on N crs within 20 mi.
NOTE: Procedure authorized only for aircraft equipped to receive MSY LFR and LOM bearings or OM simultaneously.
CAUTION: 409' WWL Radio Antenna located 2.3 miles N of airport. 452' electric transmission towers 3.4 mi S of LFR or 4.3 miles SE of airport.

City, New Orleans; State, La.; Airport Name, Moisant Int'l.; Elev, 3'; Fac. Class, SBRAZ; Ident, MSY; Procedure No. 2, Amdt. 8; Eff. Date, 14 Dec. 57; Sup. Amdt. No. 7; Dated, 13 July 57

2. The very high frequency omnirange (VOR) procedures prescribed in § 609.100 (c) are amended to read in part:

VOR STANDARD INSTRUMENT APPROACH PROCEDURE

Bearings, headings, courses and radials are magnetic. Elevations and altitudes are in feet MSL. Ceilings are in feet above airport elevation. Distances are in nautical miles unless otherwise indicated, except visibilities which are in statute miles.
If an instrument approach procedure of the above type is conducted at the below named airport, it shall be in accordance with the following instrument approach procedure, unless an approach is conducted in accordance with a different procedure for such airport authorized by the Administrator of Civil Aeronautics. Initial approaches shall be made over specified routes. Minimum altitudes shall correspond with those established for en route operation in the particular area or as set forth below.

Transition				Ceiling and visibility minimums			
From—	To—	Course and distance	Minimum altitude (feet)	Condition	2-engine or less		More than 2-engine, more than 65 knots
					65 knots or less	More than 65 knots	
				T-dn	300-1	300-1	300-1
				C-dn	600-1	600-1	600-1½
				S-dn	500-1	600-1	600-1½
				A-dn	800-2	800-2	800-2

Procedure turn West side of crs, 300 Outbnd, 120 Inbnd, 2300' within 10 mi.
Minimum altitude over facility on final approach crs, 1800'.
Crs and distance, facility to airport, 120—5.5 mi.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 5.5 miles, climb to 3500' on crs 120° within 20 mi, turn north and return to FOD VOR.
SHUTTLE: Descend in Standard Two Minute Holding Pattern on FOD VOR 120° Inbnd.
CAUTION: 1773' msl radio tower located 3.7 miles SSW of airport.

City, Fort Dodge; State, Iowa; Airport Name, Municipal; Elev, 1166'; Fac. Class, BVOR; Ident. FOD; Procedure No. 1, Amdt. Orig.; Eff. Date, 14 Dec. 57

Greenwood LFR	GRW-VOR	Direct	1400	T-dn	300-1	300-1	200-½
				C-dn	500-1	500-1	500-1½
				A-dn	800-2	800-2	800-2

Procedure turn S side of crs, 237 Outbnd, 057 Inbnd, 1300' within 10 mi. Beyond 10 mi NA.
Minimum altitude over facility on final approach crs, 800'.
Crs and distance, facility to airport, 057—4.3.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 4.3 mi, climb to 1800' on R-057 within 20 mi.

City, Greenwood; State, Miss.; Airport Name, Municipal; Elev., 129'; Fac. Class, BVOR; Ident., GRW; Procedure No. 1, Amdt. 1; Eff. Date, 14 Dec. 57; Sup. Amdt. No. Orig.; Dated, 15 Oct. 55

SSM-LFR	SSM-VOR	Direct		T-d	300-1	300-1	NA
				C-d	500-1	500-1½	NA
				S-d-32	500-1	500-1	NA
				A-d	800-2	800-2	NA

Procedure turn E side SE crs, 159 Outbnd, 339 Inbnd, 1800' within 10 mi.
Minimum altitude over facility on final approach crs, 1300'.
Crs and distance, facility to airport, 339—4.1 mi.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 4.1 miles, climb to 2500' on R-339 Sault Ste. Marie VOR within 20 mi.
CAUTION: 895' tower 0.3 miles, 025° from airport. 936' tower 2.4 miles, 205° from airport.

City, Sault Ste. Marie; State, Mich.; Airport Name, Sault Ste. Marie; Elev., 722'; Fac. Class, VOR; Ident., SSM; Procedure No. 1, Amdt. Orig.; Eff. Date, 19 Dec. 57 or date of com. of fac.

3. The terminal very high frequency omnirange (TerVOR) procedures prescribed in § 609.200 are amended to read in part:

TERMINAL VOR STANDARD INSTRUMENT APPROACH PROCEDURE

Bearings, headings, courses and radials are magnetic. Elevations and altitudes are in feet MSL. Ceilings are in feet above airport elevation. Distances are in nautical miles unless otherwise indicated, except visibilities which are in statute miles.

If an instrument approach procedure of the above type is conducted at the below named airport, it shall be in accordance with the following instrument approach procedure unless an approach is conducted in accordance with a different procedure for such airport authorized by the Administrator of Civil Aeronautics. Initial approaches shall be made over specified routes. Minimum altitudes shall correspond with those established for en route operation in the particular area or as set forth below.

Transition				Ceiling and visibility minimums			
From—	To—	Course and distance	Minimum altitude (feet)	Condition	2-engine or less		More than 2-engine, more than 65 knots
					65 knots or less	More than 65 knots	
King Hill Int	TWF VOR	Direct	6300	T-dn	300-1	300-1	200-½
GNG-RBn	TWF VOR	Direct	6300	C-dn	500-1	500-1	500-1½
Glenns Ferry Int	TWF VOR	Direct	6300	S-dn-25	500-1	500-1	500-1
BYI-VOR	TWF VOR	Direct	6700	A-dn	800-2	800-2	800-2
BYI-LFR	TWF VOR	Direct	6700				

Procedure turn North side of crs, 068 Outbnd, 248 Inbnd, 5700' within 10 mi. NA beyond 10 miles.
Minimum altitude over facility on final approach crs, 4600'.
Crs and distance, facility to airport, 253—0.3.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished, turn right, climb to 6000' on R-292 within 20 mi.

City, Twin Falls; State, Idaho; Airport Name, Joslin; Elev., 4148'; Fac. Class, BVOR; Ident., TWF; Procedure No. TerVOR-25, Amdt. 1; Eff. Date, 14 Dec. 57; Sup. Amdt. No. Orig.; Dated, 4 Feb. 54

King Hill Int	TWF VOR	Direct	6300	T-dn	300-1	300-1	200-½
GNG BH	TWF VOR	Direct	6300	C-dn	800-1	800-1	800-1½
Glenns Ferry Int	TWF VOR	Direct	6300	S-dn-7	800-1	800-1	800-1
BYI-VOR	TWF VOR	Direct	6700	A-dn	800-2	800-2	800-2
BYI-LFR	TWF VOR	Direct	6700				

Procedure turn *North side of crs, 261° Outbnd, 081° Inbnd, 5800' within 10 mi. NA beyond 10 mi.
*Procedure turn on South side NA due to high terrain.
Minimum altitude over facility on final approach crs, 4900'.
Crs and distance, facility to airport, 073—0.3.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished, turn left, climb to 6000' on R-060 within 20 mi.

City, Twin Falls; State, Idaho; Airport Name, Joslin; Elev., 4148'; Fac. Class, BVOR; Ident., TWF; Procedure No. TerVOR-7, Amdt. 1; Eff. Date, 14 Dec. 57; Sup. Amdt. No. Orig.; Dated, 4 Feb. 54

				T-dn	300-1	300-1	200-½
				C-dn	500-1	500-1	500-1½
				S-dn-12	500-1	500-1	500-1
				A-dn	800-2	800-2	800-2

Procedure turn S side of crs, 308 Outbnd, 128 Inbnd, 2000' within 10 miles.
Minimum altitude over facility on final approach crs, 1400'.
Crs and distance, breakoff point to app end rny 12, 122—0.7.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 0.0 miles, make left climbing turn to 2100' on R-112 within 20 miles.

City, Waterloo; State, Iowa; Airport Name, Municipal; Elev. 870'; Fac. Class, BVOR; Ident, ALO; Procedure No. TerVOR-12, Amdt. 3; Eff. Date, 14 Dec. 57; Sup. Amdt. No. 2; Dated, 15 Sept. 56

4. The very high frequency omnirange-distance measuring equipment (VOR/DME) procedures prescribed in § 609.300 are amended to read in part:

VOR-DME STANDARD INSTRUMENT APPROACH PROCEDURE

Bearings, headings, courses and radials are magnetic. Elevations and altitudes are in feet MSL. Ceilings are in feet above airport elevation. Distances are in nautical miles unless otherwise indicated, except visibilities which are in statute miles.

If an instrument approach procedure of the above type is conducted at the below named airport, it shall be in accordance with the following instrument approach procedure, unless an approach is conducted in accordance with a different procedure for such airport authorized by the Administrator of Civil Aeronautics. Initial approaches shall be made over specified routes. Minimum altitudes shall correspond with those established for en route operation in the particular area or as set forth below.

Transition				Ceiling and visibility minimums			
From—	To—	Course and distance	Minimum altitude (feet)	Condition	2-engine or less		More than 2-engine, more than 65 knots
					65 knots or less	More than 65 knots	
R-022 at 32 mi fix#	R-032	32 mi orbit	1300	T-dn	300-1	300-1	200-½
	22.5 fix R-032	Direct	800	C-dn	500-1	500-1	500-1½
32 mi fix R-032	20.7 mi fix R-032 (Final-22)	Direct	500	S-d	500-1	500-1	500-1
22.5 mi fix R-032				A-dn	NA	NA	NA

#Popano Int.
Procedure turn W side R-032, 1300' between 22.5 and 32.5 miles.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished immediately* turn left, climb to 1300' on R-032 within 30 miles of Miami VOR.
*CAUTION: 1005' TV TWR six miles SW of airport.
NOTE: Weather service not available. Authorized only when arrangements have been made for weather service at this airport.

City, Ft. Lauderdale; State, Fla.; Airport Name, Broward County; Elev., 10'; Fac. Class and Ident., BVOR-DME-MIA; Procedure No. VOR-DME-22; Amdt. 1; Eff. Date, 14 Dec. 57; Sup. Amdt. No. 1; Dated, 10 Mar. 56

5. The instrument landing system procedures prescribed in § 609.400 are amended to read in part:

ILS STANDARD INSTRUMENT APPROACH PROCEDURE

Bearings, headings, courses and radials are magnetic. Elevations and altitudes are in feet MSL. Ceilings are in feet above airport elevation. Distances are in nautical miles unless otherwise indicated, except visibilities which are in statute miles.

If an instrument approach procedure of the above type is conducted at the below named airport, it shall be in accordance with the following instrument approach procedure, unless an approach is conducted in accordance with a different procedure for such airport authorized by the Administrator of Civil Aeronautics. Initial approaches shall be made over specified routes. Minimum altitudes shall correspond with those established for en route operation in the particular area or as set forth below.

Transition				Ceiling and visibility minimums			
From—	To—	Course and distance	Minimum altitude (feet)	Condition	2-engine or less		More than 2-engine, more than 65 knots
					65 knots or less	More than 65 knots	
GJT VOR	Loma Int	Direct	8000	T-dn	#400-1	#500-2	300-1
GJT VOR	ILS LMM	Direct	10000	C-dn	#800-1½	1000-2	1000-2
Int R-047 GJT and NW crs ILS	Loma Int	Direct	8000	S-dn-11	#400-1	#500-2	#500-2
Int R-303 GJT and NW crs ILS	Int R-330 GJT and NW crs ILS	Direct	11000	A-dn	1500-2	1500-2	1500-2
Int R-330 GJT and NW crs ILS	OM (Final)	Direct	*8000				

#800-2 with glide slope or approach lights inoperative, 1000-2 with other ILS components inoperative.

*After intercepting glide slope at 8000', descent on glide slope to cross OM at 6060' authorized. (Note simultaneous reception of ILS and GJT VOR required for straight-in approach from R-330.)

Procedure turn S side NW crs, 290 Outbnd, 110 Inbnd, 8000' within 5 mi of Loma Int. Beyond 5 mi NA.

Minimum altitude at G. S. int inbnd, 6200'.

Altitude of G. S. and distance to approach end of rny at OM 6060-3.9, at MM 5065-0.6.

If visual contact not established upon descent to authorized landing minimums or if landing not accomplished turn right, climb to 8000' on NW crs ILS to Loma Int. If second approach not desired proceed to GJT VOR from Loma Int climbing to 10000'.

AIR CARRIER NOTE: Sliding scale applicable to straight-in minimums only.

City, Grand Junction; State, Colorado; Airport Name, Walker Field; Elev., 4858'; Fac. Class, ILS; Ident., GJT; Procedure No. ILS-11, Amdt. 11; Eff. Date, 14 Dec. 57; Sup. Amdt. No. 10; Dated, 23 June 56

Midland VOR	LMM	Direct	4200	T-dn	300-1	300-1	*200-½
Midland VOR	LOM	Direct	4200	C-dn	400-1	500-1	500-1½
Midland LFR	LOM	Direct	4000	S-dn-4:			
Midland LFR	LMM	Direct	4000	ILS	200-½	200-½	200-½
				ADF	400-1	400-1	400-1
				A-dn:			
				ILS	600-2	600-2	600-2
				ADF	800-2	800-2	800-2

AIR CARRIER NOTE: *300-1 required Runways 16L and 34R.

Procedure turn S side SW crs, 223 Outbnd, 043 Inbnd, 4400' within 10 mi. Beyond 10 mi NA.

Minimum altitude at glide slope int inbnd—4100' ILS. Min. alt. over LOM inbnd final—3800' ADF; over LMM, 3300' ADF.

Altitude of glide slope and distance to approach end of rny at LOM—4010—4.1; at MM—3070—0.6.

If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 0.6 mi after passing LMM (ADF), climb to 4400' on NE crs ILS (043) within 20 mi. When directed by ATC, turn right, climb to 4400' on SE crs LFR or R-150 within 20 mi. If LOM not received altitude over LMM is 3800' and straight in minima NA. 400-¾ required when glide slope not utilized.

City, Midland; State, Tex.; Airport Name, Air Terminal; Elev., 2867'; Fac. Class, ILS-IMAF; Ident., LMM-AF; Procedure No. ILS-4, Comb. ILS-ADF, Amdt. 7; Eff. Date, 14 Dec. 57; Sup. Amdt. No. 6; Dated, 16 July 55

Midland VOR	Radio Int#	Direct	4100	T-dn	300-1	300-1	*200-½
Stanton Int	Tank Farm Int	Direct	4400	C-dn	400-1	500-1	500-1½
Tank Farm Int	Radio Int (Final)	Direct	3900	S-dn-22	400-1	400-1	400-1
				A-dn	800-2	800-2	800-2

*300-1 required Runways 16L and 34R.

#Radio Int: Int NE crs ILS and R-117 MAF.

Procedure turn N side of NE crs of ILS, 043 Outbnd, 223 Inbnd, 4400' within 10 mi. Beyond 10 mi NA.

No glide slope. Altitude over Radio Int, 3900'; Crs and distance, Radio Int to Airport, 223—3.5.

If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 3.5 mi, climb to 4400' on SW crs ILS within 20 mi, or when directed by ATC, climb to 4000' on R-150 MAF or climb to 4000' on SE crs of MAF LFR within 20 mi.

City, Midland; State, Tex.; Airport Name, Air Terminal; Elev., 2867'; Fac. Class, ILS-IMAF; Ident., BYOR-MAF; procedure No. ILS-22, Amdt. 2; Eff. Date, 14 Dec. 57; Sup. Amdt. No. 1; Dated, 6 Aug. 55

Salinas VOR	LOM	Direct	4000	T-dn	300-1	300-1	300-¾
Davenport Int	LOM	Direct	2000	S-dn	300-¾	300-¾	300-¾
MRY RBn	LOM	Direct	1800	C-d	700-2	700-2	700-2
				C-n	700-3	700-3	700-3
				A-d	700-2	700-2	700-2
				A-n	700-3	700-3	700-3

Procedure turn South side of W crs, 276° Outbnd, 096° Inbnd, 1600' within 10 mi. Beyond 10 mi NA.

Minimum altitude at glide slope int. inbnd, 1600' ILS.

Altitude of glide slope and distance to approach end of rny at LOM—1500—4.1; at MM—370—0.5.

If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 0.0 miles after passing LMM make immediate left climbing turn and climb to 1800' to LOM.

CAUTION: Circling minimums do not provide standard clearance over terrain south of airport. All maneuvering for circling approaches must be accomplished north of localizer course.

NOTE: Provisions for use with inoperative components not applicable.

City, Monterey; State, Calif.; Airport Name, Monterey Peninsula; Elev., 220'; Fac. Class, ILS; Ident., IMRY; Procedure No. 1, Amdt. Orig.; Eff. Date, 7 Dec. 57

ILS STANDARD INSTRUMENT APPROACH PROCEDURE—Continued

Transition				Ceiling and visibility minimums			
From—	To—	Course and distance	Minimum altitude (feet)	Condition	2-engine or less		More than 2-engine, more than 65 knots
					65 knots or less	More than 65 knots	
PIH VOR	LOM	Direct	7000	T-dn	300-1	300-1	200-½
PIH LFR	LOM	Direct	7000	C-d	500-1	600-1	600-1½
Falls Int	LOM	Direct	7000	C-n	500-2	600-2	600-2
				S-dn-21:			
				ILS	300-¾	300-¾	300-¾
				ADF	500-1	600-1	600-1½
				A-dn:			
				ILS	600-2	600-2	600-2
				ADF	800-2	800-2	800-2

Procedure turn N side of NE crs, 027 Outbnd, 207 Inbnd, 7000' within 10 mi of PIH-LOM. NA beyond 10 mi.
Minimum altitude at glide slope int inbnd, 7000' ILS. Min. alt over LOM inbnd final—5800' ADF.
Altitude of glide slope and distance to approach end of runway at OM—5610'—3.7; at MM—4660'—0.6.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 3.7 mi of LOM (ADF) climb to 6500' on W crs PIH-LFR or on R-234 PIH within 20 mi. Alternate missed approach when directed by ATC: turn right and climb to 7500' on N crs of PIH-LFR or on R-335 PIH within 20 mi.
CAUTION: High terrain SW through SE of airport.

City, Pocatello; State, Idaho; Airport Name, Municipal; Elev, 4448'; Fac. Class, ILS-PIH; Ident. LOM-PI; Procedure No. ILS21, Comb ILS-ADF, Amdt. 3; Eff. Date, 14 Dec. 57; Sup. Amdt. No. 2; Dated, 23 Mar. 57

Verdigris River FM	OWS-RBn	Direct	1900	T-dn	300-1	300-1	200-½
Tulsa LFR	OWS-RBn	Direct	1900	C-dn	400-1	500-1	500-1½
Skiatook FM	OWS-RBn	Direct	2000	S-dn-17L ADF	400-1	400-1	400-1
Tulsa VOR	OWS-RBn	Direct	1900	and ILS.			
Int R-327 TUL and N crs ILS	OWS-RBn (Final)	Direct	1309	A-dn	800-2	800-2	800-2

300-1 required on Runways 3L, 21R, 17R and 35L.
Procedure turn W side of crs, 354 Outbnd, 174 Inbnd, 2200' within 10 miles. NA beyond 10 mi.
No glide slope. Minimum altitude over OWS on final approach, 1300'.
Brng and distance, OWS to Rny 17L, 174—5.4.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 5.4 miles, climb to 2200' on S crs ILS (174° from OWS) within 20 miles, or when directed by ATC, climb to 2200' on R-114 TUL VOR within 20 miles.

City, Tulsa; State, Okla.; Airport Name, Municipal; Elev., 674'; Fac. Class, ILS-ITUL; Ident., MHW-OWS; Procedure No. ILS, Comb ILS-ADF, Amdt.1; Eff. Date, 14 Dec. 57; Sup. Amdt. No, Orig.; Dated, 9 Apr. 57

These procedures shall become effective on the dates indicated on the procedures.

(Sec. 205, 52 Stat. 984, as amended; 49 U. S. C. 425. Interpret or apply sec. 601, 52 Stat. 1007, as amended; 49 U. S. C. 551)

[SEAL]

WILLIAM B. DAVIS,
Acting Administrator of Civil Aeronautics.

NOVEMBER 12, 1957.

[F. R. Doc. 57-9518; Filed, Nov. 22, 1957; 8:45 a. m.]

TITLE 16—COMMERCIAL PRACTICES

Chapter I—Federal Trade Commission

[Docket 6612]

PART 13—DIGEST OF CEASE AND DESIST ORDERS

SURF SALES CO., INC., ET AL.

Subpart—*Aiding, assisting and abetting unfair or unlawful act or practice:* § 13.290 *Aiding, assisting and abetting unfair or unlawful act or practice.* Subpart—*Using, selling, or supplying lottery devices:* § 13.2475 *Devices for lottery selling.*

(Sec. 6, 38 Stat. 721; 15 U. S. C. 46. Interpret or apply sec. 5, 38 Stat. 719, as amended; 15 U. S. C. 45) [Cease and desist order, Surf Sales Co., Inc., et al., Chicago, Ill., Docket 6612, October 28, 1957]

In the Matter of Surf Sales Company, Inc., a Corporation, and Thomas F. Marsh, Individually and as President of Surf Sales Company, Inc.; and Samuel Specter, Individually

This proceeding was heard by a hearing examiner on the complaint of the Commission charging sellers in Chicago of cameras, electric appliances, and other articles of merchandise, with furnishing to operators and to members of the public various plans of merchandising—including push cards and instructions for their use—which involved the operation of games of chance or lottery schemes in the sale of the goods to the consuming public.

After a hearing, the hearing examiner filed his initial decision and order to cease and desist, from which respondents appealed. After hearing the matter on briefs and oral argument, the Commission on October 28 rendered its decision denying the appeal and adopting the findings, conclusions, and order contained in the initial decision.

The order to cease and desist is as follows:

It is ordered, That respondent Surf Sales Company, Inc., a corporation, and its officers, and respondents Thomas F. Marsh and Samuel Specter individually, and respondents' representatives, agents, and employees, directly or through any corporate or other device, in connection with the offering for sale, sale or distribution of watches, electric coffee sets, fry-pan, or other merchandise in commerce, as "commerce" is defined in the Federal Trade Commission Act, do forthwith cease and desist from:

1. Supplying to or placing in the hands of others push cards or any other lottery devices, either with merchandise or separately, which are designed or intended to be used in the sale or distribution of respondents' merchandise to the public by means of a game of chance, gift enterprise or lottery scheme.

2. Selling or otherwise disposing of any merchandise by means of a game of chance, gift enterprise, or lottery scheme.

By "Final Order," report of compliance was required as follows:

It is ordered, That the respondents shall, within sixty (60) days after service upon them of this order, file with the Commission a report, in writing, setting forth in detail the manner and form in which they have complied with the order to cease and desist contained in the aforesaid initial decision.

Issued: October 28, 1957.

By the Commission.

[SEAL] ROBERT M. PARRISH,
Secretary.

[F. R. Doc. 57-9713; Filed, Nov. 22, 1957; 8:49 a. m.]

[Docket 6630]

PART 13—DIGEST OF CEASE AND DESIST ORDERS

VIRGINIA EXCELSIOR MILLS, INC., ET AL.

Subpart—*Combining or conspiring:* § 13.410 *To eliminate or restrain competition in conspirators' goods;* § 13.430 *To enhance, maintain or unify prices;* § 13.452 *To limit production.*

(Sec. 6, 38 Stat. 721; 15 U. S. C. 46. Interpret or apply sec. 5, 38 Stat. 719, as amended; 15 U. S. C. 45) [Cease and desist order, Virginia Excelsior Mills, Inc. (Doswell, Va.), et al., Docket 6630, October 25, 1957]

In the Matter of Virginia Excelsior Mills, Inc., a Corporation; W. H. Baker, T. Frank Flippo, H. L. Taylor, and F. C. Flippo, Individuals and Officers of Respondent Virginia Excelsior Mills, Inc.; T. Frank Flippo, F. Carter Flippo, and Arthur P. Flippo, Individuals and Copartners Trading as T. Frank Flippo & Sons; H. L. Taylor, H. Ashton Taylor, G. K. Coleman, Sr., and G. K. Coleman, Jr., Individuals and Copartners Trading as Ruther Glen Excelsior Company; Thomas H. Blanton, an Individual Trading as Thomas H. Blanton Excelsior Mill; T. Nelson Haley and Jesse C. Haley, Individuals and Copartners Trading as Haley Excelsior Company; W. H. Baker, an Individual Trading as Hallsboro Manufacturing Company; S. D. Quarles and J. R. Gilman, Individuals and Copartners Trading as Penola Excelsior Company; C. J. Haley, an Individual Trading as Ashland Excelsior Company; Noah Markey, an Individual Trading as Markey Excelsior Company; S. D. Quarles Lumber Company, Inc., a Corporation; C. T. Smith, an Individual Trading as C. T. Smith; Catherine C. Wright and Dorothy E. Campbell, Trustees of the Estates of D. E. Campbell and T. E. Campbell, and Ray S. Campbell, Addie C. Doswell, Elliot Campbell, E. May Campbell, and Bessie S. Campbell, Are Individuals and Copartners Trading and Doing Business as Old Dominion Excelsior Company, Respondents

This proceeding was heard by a hearing examiner on the complaint of the Commission charging some 15 manufacturers of excelsior in the State of Virginia with collusively organizing a common selling agent, also respondent in this proceeding, all of whose stock they owned, as a medium through which they jointly fixed and maintained the selling price of excelsior and the production quota for each manufacturer; prohibited their manufacturers from selling to anyone except said selling agent and from quoting prices to any prospective customers; established a method of uniform classification of excelsior and maintained the price for each class; fixed penalties to be imposed on any manufacturer who violated any of the aforesaid provisions of their contract; and prohibited any manufacturer from selling its plant unless in connection therewith it sold its stock in said common selling agent.

Following hearings in due course, the hearing examiner made his initial decision including findings, conclusions, and order to cease and desist, from which counsel for respondents filed appeal. After hearing the matter on briefs and oral argument, the Commission on October 25 rendered its decision denying the appeal and adopting the initial decision as its own decision.

The order to cease and desist is as follows:

It is ordered, That Respondents Virginia Excelsior Mills, Inc., a corporation, W. H. Baker, T. Frank Flippo, H. L. Taylor and F. C. Flippo, individuals and officers of Respondent Virginia Excelsior Mills, Inc., T. Frank Flippo, F. Carter Flippo, and Arthur P. Flippo, individuals and copartners trading as T. Frank Flippo & Sons, H. L. Taylor, H. Ashton Taylor, G. K. Coleman, Sr., and G. K. Coleman, Jr., individuals and copartners trading as Ruther Glen Excelsior Company, T. Nelson Haley and Jesse C. Haley, individuals and copartners trading as Haley Excelsior Company, W. H. Baker, an individual trading as Hallsboro Manufacturing Company, S. D. Quarles and J. R. Gilman, individuals and copartners trading as Penola Excelsior Company, C. J. Haley, an individual trading as Ashland Excelsior Company, H. L. Taylor and Thomas H. Chewning, individuals and copartners trading as Caroline Excelsior Company, and as Chilesburg Excelsior Company, Benjamin Jeter, an individual trading as Benjamin Jeter, S. D. Quarles Lumber Company, Inc., a corporation, C. T. Smith, an individual trading as C. T. Smith, Ray S. Campbell, Addie C. Doswell, Elliot Campbell, E. May Campbell, and Bessie S. Campbell, individuals and copartners trading and doing business as Melford Excelsior Company, and said respective Respondents' officers, agents, representatives and employees, in or in connection with the production, offering for sale, sale or distribution in commerce, as "commerce" is defined in the Federal Trade Commission Act, of excelsior, do forthwith cease and desist from entering into, continuing, cooperating in, or carrying out any combination, agreement, understanding, or planned common course of action between any two or more of said Respondents, or between or among any one or more of said Respondents and others not parties hereto, to do or perform any of the following acts or practices:

1. Operating or maintaining the Respondent Virginia Excelsior Mills, Inc., or any other corporation or organization as a common selling agent;

2. Fixing the selling price of excelsior or maintaining any prices so fixed;

3. Fixing or in anywise regulating production quotas;

4. Restricting manufacturers in selling and offering excelsior for sale by

a. Designating the party to whom they or either of them can sell;

b. Designating the party to whom they or either of them can offer to sell;

c. Designating the party to whom they or either of them can quote prices;

d. Designating the party to whom they or either of them can quote; or

e. Imposing any other restriction, or enforcing any such restriction by the imposition of penalties, or otherwise;

5. Classifying excelsior for pricing purposes;

6. Designating conditions under which mill owners who own stock in Respondent Virginia Excelsior Mills, Inc., may sell their mills or machines.

It is further ordered, That the complaint herein, insofar as it relates to Respondents Thomas L. Blanton, Noah Markey, Catherine C. Wright and Dorothy E. Campbell, be, and the same hereby is, dismissed without prejudice to the right of the Commission to take such action in the future as the facts may then warrant.

By "Final Order", report of compliance was required as follows:

It is ordered, That respondents, Virginia Excelsior Mills, Inc., a corporation, W. H. Baker, T. Frank Flippo, H. L. Taylor and F. C. Flippo, individuals and officers of said corporation, F. Carter Flippo, Arthur P. Flippo, H. Ashton Taylor, G. K. Coleman, Sr., G. K. Coleman, Jr., T. Nelson Haley, Jesse C. Haley, S. D. Quarles, J. R. Gilman, C. J. Haley, Thomas H. Chewning, Benjamin Jeter, S. D. Quarles Lumber Company, Inc., a corporation, C. T. Smith, Ray S. Campbell, Addie C. Doswell, Elliot Campbell, E. May Campbell, Bessie S. Campbell, shall, within sixty (60) days after service upon them of this order, file with the Commission a report, in writing, setting forth in detail the manner and form in which they have complied with the order to cease and desist.

Issued: October 25, 1957.

By the Commission.

[SEAL] ROBERT M. PARRISH, *Secretary.*

[F. R. Doc. 57-9714; Filed, Nov. 22, 1957; 8:50 a. m.]

TITLE 39—POSTAL SERVICE

Chapter I—Post Office Department

PART 202—PROCEDURE BEFORE THE GENERAL COUNSEL

In Part 202 *Procedure Before The Solicitor*, make the following changes:

1. Amend the Part caption to read as set forth above.

2. Amend Subpart A, *Procedure Governing the Admission of Attorneys to Practice Before the Post Office Department*, to read as follows:

SUBPART A—PROCEDURE GOVERNING THE ADMISSION OF ATTORNEYS TO PRACTICE BEFORE THE POST OFFICE DEPARTMENT

Sec.
202.1 Requisites to admission.
202.2 Persons ineligible for admission to practice.
202.3 Authorization of appearance required.
202.4 Complaint of misconduct.
202.5 Suspension and disbarment from practice; grounds.
202.6 Notice of disbarment; exclusion from practice.

AUTHORITY: §§ 202.1 to 202.6 issued under R. S. 161, 396, as amended; 5 U. S. C. 22, 369.

SUBPART A—PROCEDURE GOVERNING THE ADMISSION OF ATTORNEYS TO PRACTICE BEFORE THE POST OFFICE DEPARTMENT

§ 202.1 *Requisites to admission.* (a) Any individual who is a party to any proceedings before an examiner may appear for himself or by an attorney-at-law.

(b) Except as provided in § 202.2, any attorney-at-law who is a member in good standing of the Bar of the Supreme Court of the United States or of the highest court of any State, Territory or of the District of Columbia, and is not under any order of any court suspending, enjoining, restraining, disbarring, or otherwise restricting him in the practice

of law may represent others before the Post Office Department.

(c) When an attorney acting in a representative capacity appears in person or signs a paper in practice before the Post Office Department his personal appearance or signature shall constitute a representation to the Post Office Department that under the provisions of this part and the law he is authorized and qualified to represent the particular party in whose behalf he acts.

§ 202.2 *Persons ineligible for admission to practice.* (a) No attorney disbarred from practice in this Department or in any other executive department will be eligible for admission to practice before the Post Office Department until said order of disbarment shall have been revoked.

(b) Any attorney who, subsequently to being admitted to practice before the Post Office Department, is disbarred by any other executive department shall be deemed suspended from practice in this Department during the pendency of said order of disbarment.

(c) No person who has been an attorney, officer, clerk, or employee in this Department will be recognized as attorney for prosecuting before this Department or any office thereof any case or matter with which he was in anywise connected while he was such attorney, officer, clerk, or employee.

(d) No person coming within the prohibitions of 5 U. S. C. 99, 18 U. S. C. 281, or 18 U. S. C. 283, will be recognized as attorney before this Department or any office thereof.

§ 202.3 *Authorization of appearance required.* The head of any bureau or office may require an attorney to present satisfactory evidence of his authority to represent the person for whom he appears.

§ 202.4 *Complaint of misconduct.* If the head of any bureau or office of the Department has reason to believe, or if complaint be made to him, that any attorney is guilty of conduct subjecting him to suspension or disbarment, the head of such office shall report the same to the General Counsel, who shall proceed in accordance with the rules issued by him, which are set forth in §§ 202.20 to 202.41.

§ 202.5 *Suspension and disbarment from practice; grounds.* Any attorney who is guilty of conduct falling in one or more of the following categories may be suspended or disbarred:

(a) Who charges or receives, either directly or indirectly, in cases before the Post Office Department arising under the Federal Tort Claims Act (62 Stat. 869, 28 U. S. C. 2678), any fee or compensation in excess of that provided for by section 2678 of said act, or in cases before the Department not arising under said act, any fee or compensation deemed to be grossly excessive in relation to the services performed.

(b) Who, with intent to defraud or deceive, bribes, attempts to bribe, coerces, or attempts to coerce, by any means whatsoever, any person, including a party to a case, or an officer or employee of the Post Office Department or postal service, to commit an act or to refrain from performing an act in connection with any case;

(c) Who wilfully misleads, misinforms, or deceives an officer or employee of the Post Office Department or postal service concerning any material and relevant fact in connection with a case;

(d) Who wilfully deceives, misleads, or threatens any party to a case concerning any matter relating to the case;

(e) Who solicits practice by means of runners or other unethical methods;

(f) Who represents, as an associate, an attorney who, known to him, solicits practice by means of runners or other unethical methods;

(g) Who has been temporarily suspended, and such suspension is still in effect, or permanently disbarred from practice in any court, Federal, State (including the District of Columbia), territorial, or insular;

(h) Who is temporarily suspended, and such suspension is still in effect, or permanently disbarred from practice in a representative capacity before any executive department, board, commission, or other Governmental unit, Federal, State (including the District of Columbia), territorial, or insular;

(i) Who, by use of his name, personal appearance, or any device, aids and abets an attorney to practice during the period of his suspension or disbarment, such suspension, or disbarment being known to him;

(j) Who wilfully made false statements in his application for admission to practice or in his participation in any case;

(k) Who engages in contumelious or otherwise unprofessional conduct with respect to a case in which such attorney acts in a representative capacity which would constitute cause for suspension or disbarment were the case pending before a court;

(l) Who, having been furnished with a copy or copies of any portion of the record in any case, wilfully fails to surrender such copy or copies upon final disposition of the case, or wilfully and without authorization makes and retains a copy or copies of the material furnished;

(m) Who has been convicted of a felony, or, having been convicted of any crime, is sentenced to imprisonment for a term of one year or more;

(n) Who no longer possesses the qualifications required for admission to practice.

§ 202.6 *Notice of disbarment; exclusion from practice.* Upon the disbarment of an attorney, notice thereof will be given to the heads of the offices of this Department and to the other Executive Departments, and thereafter, until otherwise ordered, such disbarred persons will not be recognized as attorneys before the Post Office Department or any office thereof.

[SEAL] HERBERT B. WARBURTON,
Acting General Counsel.

[F. R. Doc. 57-9736; Filed, Nov. 22, 1957; 8:57 a. m.]

TITLE 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

Appendix—Public Land Orders

[Public Land Order 1553]

[71745]

WYOMING

POWER SITE RESTORATION NO. 528; PARTIALLY REVOKING EXECUTIVE ORDER OF JULY 13, 1911, WHICH CREATED POWER SITE RESERVE NO. 190

By virtue of the authority vested in the President by section 1 of the act of June 25, 1910 (36 Stat. 847; 43 U. S. C. 141), and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

The Executive order of July 13, 1911, which created Power Site Reserve No. 190, is hereby revoked so far as it affects the following-described land:

SIXTH PRINCIPAL MERIDIAN

T. 34 N., R. 109 W.,
Sec. 26, N½NE¼NE¼NE¼.

The tract described contains 5 acres.

The land lies ⅜ of a mile south of the southern tip of Fremont Lake in Sublette County and two and one-half miles north of the town of Pinedale. The surface of the land is rolling to broken and is covered with large boulders. The soil is gravelly and coarse and it supports a moderately heavy stand of big sagebrush with an understory of perennial grasses.

This order shall not become effective to change the status of the described land until 10:00 a. m. on December 25, 1957. At that time the said land shall become subject to application, petition, location and selection under the applicable public land laws, subject to valid existing rights, the provisions of existing withdrawals, the requirements of applicable laws, and the 91-day preference right filing period for veterans and others entitled to preference under the act of September 27, 1944 (58 Stat. 747; 43 U. S. C. 279–284) as amended.

Information showing the periods during which and the conditions under which veterans and others may file applications for the land may be obtained from the Manager, Land Office, Bureau of Land Management, Cheyenne, Wyoming.

ROGER C. ERNST,
Assistant Secretary of the Interior.

NOVEMBER 19, 1957.

[F. R. Doc. 57-9705; Filed, Nov. 22, 1957; 8:45 a. m.]

[Public Land Order 1554]

[Utah 06124]

UTAH

PARTIALLY REVOKING PUBLIC LAND ORDER 1187

By virtue of the authority vested in the President and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

Public Land Order No. 1187 of July 11, 1955, reserving certain lands in the State of Utah under jurisdiction of the Secretary of the Interior, is hereby revoked so far as it affects the following-described lands:

SALT LAKE MERIDIAN

T. 6 N., R. 5 W.,
Sec. 6, lots 3 and 4.

The areas described contain 80.14 acres.

Beginning on December 25, 1957, the lands will become subject to application, location, offer, or selection under the public-land laws, including the mining and mineral-leasing laws.

This revocation is made in furtherance of a proposed exchange under section 8 of the act of June 28, 1934 (48 Stat. 1272; 43 U. S. C. 315g) as amended, by which the offered lands will benefit a Federal land program. This opening is therefore not subject to the provisions contained in the act of September 27, 1944 (58 Stat. 747; 43 U. S. C. 279–284) as amended, granting certain preference rights to veterans of World War II, the Korean Conflict, and others.

ROGER C. ERNST,
Assistant Secretary of the Interior.

NOVEMBER 19, 1957.

[F. R. Doc. 57-9706; Filed, Nov. 22, 1957; 8:45 a. m.]

[Public Land Order 1555]

[Oregon 05521]

OREGON

WITHDRAWING PUBLIC LANDS IN OREGON FOR USE OF BUREAU OF LAND MANAGEMENT, DEPARTMENT OF THE INTERIOR, AS AN ADMINISTRATIVE SITE

By virtue of the authority vested in the President and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

Subject to valid existing rights, the following-described public lands in Oregon are hereby withdrawn from all forms of appropriation under the public-land laws, including the mining and mineral leasing laws, but not the act of July 31, 1947 (61 Stat. 681; 30 U. S. C. 601–604) and reserved for use of the Bureau of Land Management, Department of the Interior, as an administrative site:

WILLAMETTE MERIDIAN

T. 33 S., R. 32¾ E.,
Sec. 1, lots 1, 2, and SW¼NE¼.

The areas described aggregate 116.12 acres.

ROGER C. ERNST,
Assistant Secretary of the Interior.

NOVEMBER 19, 1957.

[F. R. Doc. 57-9707; Filed, Nov. 22, 1957; 8:45 a. m.]

[Public Land Order 1556]

[Arizona 04756]

ARIZONA

RESERVING PUBLIC LANDS WITHIN PRESCOTT NATIONAL FOREST FOR USE OF FOREST SERVICE AS ADMINISTRATIVE SITES, RECREATION AREAS, AND ROADSIDE ZONES

By virtue of the authority vested in the President by the act of June 4, 1897 (30 Stat. 34, 36; 16 U. S. C. 473) and otherwise, and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

Subject to valid existing rights, the following-described public lands within the Prescott National Forest in Arizona are hereby withdrawn from all forms of appropriation under the public-land laws, including the mining but not the mineral-leasing laws, and reserved for use of the Forest Service, Department of Agriculture, as administrative sites, recreation areas, and roadside zones as indicated:

GILA AND SALT RIVER MERIDIAN

CROWN KING ADMINISTRATIVE SITE

T. 10 N., R. 1 W., unsurveyed,
Starting at Corner No. 1 of Estella patented mining claim covered by Mineral Survey No. 3187 and expected to be located in sec. 14, T. 10 N., R. 1 W., thence due East for a distance of 10 chains, thence due South for a distance of 20 chains, thence due West for a distance of 20 chains, thence due North for a distance of 20 chains, thence due East for a distance of 10 chains to point of beginning.
The area described contains 40 acres.

DRAKE ADMINISTRATIVE SITE

T. 19 N., R. 1 W.,
Sec. 32, NE¼ and E½SE¼.
The areas described aggregate 240 acres.

GOVERNMENT SPRING RECREATION AREA

T. 12 N., R. 3 E.,
Sec. 3, lot 3.
T. 13 N., R. 3 E.,
Sec. 33, lots 11 and 14.
The areas described aggregate 116.53 acres.

GRANITE CREEK RECREATION AREA

T. 13 N., R. 2 W.,
Sec. 16, W½E½NW¼, SE¼NW¼NW¼, E½SW¼NW¼, E½NW¼SW¼, SW¼NW¼SW¼, N½NE¼SW¼, SE¼NE¼SW¼, and NW¼SW¼SW¼.
The areas described aggregate 140 acres.

GROOM CREEK ADMINISTRATIVE SITE

T. 13 N., R. 2 W.,
Sec. 26, lot 28.
The area described contains 7.88 acres.

HICKEY MOUNTAIN SUMMER HOME AREA, POTATO PATCH PICNIC AREA, AND LOWER MINGUS MOUNTAIN WINTER SPORTS AREA

T. 15 N., R. 2 E., unsurveyed,
Sec. 4, SW¼NW¼ and NW¼SW¼;
Sec. 5, S½NE¼ and N½SE¼.
The areas described aggregate 240 acres.

HYDE MOUNTAIN LOOKOUT

T. 17 N., R. 6 W.,
Sec. 20, SW¼SE¼;
Sec. 29, NW¼NE¼.
The areas described aggregate 80 acres.

INDIAN CREEK RECREATION AREA

T. 13 N., R. 2 W.,
Sec. 19, lots 12, 13, 19, and 20;
Sec. 20, lots 5, 12, and 13;
Sec. 29, lots 6 and 7;
Sec. 30, lot 5.
The areas described aggregate 441.37 acres.

JOHNSON WASH RANGER STATION

T. 14 N., R. 3 E.,
Sec. 33, lots 1, 2, 3, S½NW¼SE¼, S½NE¼SW¼, and SE¼NW¼SW¼.
The areas described aggregate 132.05 acres.

MINGUS MOUNTAIN LOOKOUT, MINGUS MOUNTAIN RECREATION AREA, MINGUS MOUNTAIN SUMMER HOME AREA, AND PLAYGROUNDS PICNIC AREA

T. 15 N., R. 2 E., unsurveyed,
Starting at Corner No. 6 of Homestead Entry Survey No. 92, expected to be located in secs. 3, 4, 9 and 10, thence due East for a distance of 50 chains, thence due South for a distance of 60 chains, thence due West for a distance of 130 chains, thence due North for a distance of 60 chains, thence due East for a distance of 80 chains to point of beginning.
The areas described contain 662.84 acres.

POWELL SPRINGS RECREATION AREA

T. 14 N., R. 3 E.,
Sec. 19, E½NE¼SW¼, NW¼SE¼, SW¼NE¼SE¼, N½SW¼SE¼, and NW¼SE¼SE¼.
The areas described aggregate 100 acres.

SPRUCE MOUNTAIN LOOKOUT

T. 13 N., R. 1 W.,
Sec. 31, NW¼SE¼.
The area described contains 40 acres.

THUMB BUTTE RECREATION AREA

T. 14 N., R. 3 W.,
Sec. 36, lots 1, 2, SE¼NW¼NE¼, and NE¼SW¼NE¼.
The areas described aggregate 105.28 acres.

TONTO SPRINGS ADMINISTRATIVE SITE

T. 15 N., R. 4 W.,
Sec. 34, W½W½W½.
The area described contains 80 acres.

TOWERS MOUNTAIN LOOKOUT

T. 10 N., R. 1 W., unsurveyed,
Starting at the mineral survey corner designated as Corner No. 2 of the Bear patented mining claim and Corner No. 3 of the Kitty patented mining claim as shown on Mineral Survey No. 3010, thence due South along the West side of the Kitty patented claim a distance of 750 feet to the point of beginning, thence due South a distance of 20 chains, thence due West a distance of 20 chains, thence due North a distance of 20 chains, thence due East a distance of 20 chains to the point of beginning.
The area described contains 40 acres.

WILLOW ADMINISTRATIVE SITE ADDITION

T. 14 N., R. 3 W.,
Sec. 13, lot 1.
The area described contains 41.47 acres.

WOLF CREEK RECREATION AREA

T. 12½ N., R. 2 W., unsurveyed,
Sec. 3, NW¼NW¼NE¼.
T. 13 N., R. 2 W.,
Sec. 34, lots 15, 16, and 17.
The areas described aggregate 130.73 acres.

YAEGER CANYON ADMINISTRATIVE SITE

T. 15 N., R. 2 E., unsurveyed,
Sec. 17, S½NW¼, S½NW¼NW¼, SW¼NE¼NW¼, S½SW¼NE¼, NW¼SW¼NE¼, SW¼SE¼NE¼, SE¼, and N½N½SW¼;
Sec. 18, SE¼NW¼, S½SW¼NW¼, NE¼SW¼NW¼, S½NE¼, S½N½NE¼, N½N½SE¼, NE¼SW¼, N½NW¼SW¼, SE¼NW¼SW¼;

Sec. 20, N½N½NE¼.
The areas described aggregate 690 acres.

WHITE SPAR (U. S. NO. 89) HIGHWAY, ROADSIDE ZONE

A strip of land 300 feet on each side of the center line of U. S. Highway No. 89 through the following legal subdivisions:

T. 12½ N., R. 3 W.,
Sec. 23, lots 1, 2, SW¼SE¼, and SE¼SW¼;
Sec. 24, lots 2, 3, and 4;
Sec. 26, NW¼ and SW¼;
Sec. 33, NW¼, SW¼, and SE¼;
Sec. 34, SW¼, SE¼, and NE¼;
Sec. 35, NW¼.
T. 13 N., R. 2 W.,
Sec. 16, NW¼ and SW¼;
Sec. 17, lot 16;
Sec. 19, lots 12, 13, and 20;
Sec. 20, lots 1, 2, 3, 4, 5, and 6;
Sec. 30, lots 5, 10, 11, 12, 15, 16, and 17;
Sec. 31, lot 8.
T. 13 N., R. 3 W.,
Sec. 25, lots 3 and 4;
Sec. 35, SE¼;
Sec. 36, NE¼, SE¼, and SW¼.

PRESCOTT-ASHFORK (U. S. NO. 89) HIGHWAY ROADSIDE ZONE

A strip of land 200 feet on each side of the center line of U. S. Highway No. 89 through the following legal subdivisions:

T. 18 N., R. 1 W.,
Sec. 6, NE¼, NW¼, and SW¼.
T. 18 N., R. 2 W., unsurveyed,
Sec. 1, SE¼;
Sec. 12, NE¼, SE¼, and SW¼;
Sec. 13, NW¼ and SW¼;
Sec. 14, SE¼;
Sec. 23, NE¼, NW¼, and SW¼.
T. 19 N., R. 1 W.,
Sec. 6, NE¼ and SE¼;
Sec. 7, NE¼ and SE¼;
Sec. 17, NW¼ and SW¼;
Sec. 18, NE¼ and SE¼;
Sec. 20, NW¼ and SW¼;
Sec. 29, NW¼ and SW¼;
Sec. 31, NE¼ and SE¼;
Sec. 32, NW¼.
T. 20 N., R. 1 W.,
Sec. 31, NE¼, NW¼, and SE¼.

NEW BLACK CANYON HIGHWAY—CORDES JUNCTION TO FLAGSTAFF, ROADSIDE ZONE

A strip of land 200 feet on each side of the center line of the Cordes Junction to Flagstaff section of the New Black Canyon Highway, through the following legal subdivisions:

T. 12 N., R. 3 E.,
Sec. 3, NE¼, NW¼, and SE¼;
Sec. 10, NE¼, SE¼, and SW¼;
Sec. 15, NW¼;
Sec. 16, NE¼ and NW¼;
Sec. 17, NE¼, SE¼, and SW¼;
Sec. 20, NE¼, NW¼, and SW¼.
T. 13 N., R. 3 E.,
Sec. 1, SE¼ and SW¼;
Sec. 2, SE¼;
Sec. 11, NE¼ and SE¼;
Sec. 14, NE¼, NW¼, and SW¼;
Sec. 15, SE¼;
Sec. 22, NE¼, SE¼, and SW¼;
Sec. 27, NW¼;
Sec. 28, NE¼ and SE¼;
Sec. 33, NE¼, SE¼, and SW¼.
T. 13 N., R. 4 E.,
Sec. 3, NE¼SE¼;
Sec. 7, lots 2 and 3;
Sec. 8, NW¼, SW¼, and SE¼;
Sec. 9, NE¼, NW¼, and SW¼;
Sec. 10, NE¼ and NW¼.
T. 14 N., R. 4 E.,
Sec. 25, NW¼, and SW¼;
Sec. 26, SE¼;
Sec. 34, SE¼;
Sec. 35, NE¼, NW¼, and SW¼.

MINGUS MOUNTAIN HIGHWAY (U. S. NO. 89A) ROADSIDE ZONE

A strip of land 200 feet on each side of the center line of the Mingus Mountain Highway, U. S. Highway 89A, through the following legal subdivisions:

T. 15 N., R. 2 E., unsurveyed,
Sec. 5, NE¼, SE¼, and SW¼;
Sec. 7, NE¼ and SE¼;
Sec. 8, NE¼ and NW¼;
Sec. 18.
T. 16 N., R. 2 E.,
Sec. 13, SE¼ (unsurveyed);
Sec. 22, SE¼ (unsurveyed);
Sec. 23, NE¼, SE¼, and SW¼;
Sec. 24, NE¼ and NW¼;
Sec. 27, NE¼ and NW¼ (unsurveyed);
Sec. 28 (unsurveyed);
Sec. 32, NE¼ and SE¼ (unsurveyed);
Sec. 33, NW¼ and SW¼ (unsurveyed).

SENATOR HIGHWAY (FOREST ROAD NO. 52), ROADSIDE ZONE

A strip of land 300 feet on each side of the center line of the Senator Highway, Forest Highway No. 52, through the following legal subdivisions:

T. 13 N., R. 2 W.,
Sec. 14, lots 4, 12, 13, and 14;
Sec. 15, lots 1, 8, and 9;
Sec. 23, lots 3, 4, 6, 7, 10, and 14;
Sec. 26, lots 20, 26, 29, 33, and 34;
Sec. 35, lots 5, 6, 7, 8, 14, 15, and 16.
T. 12½ N., R. 2 W., unsurveyed,
Sec. 23, E½W½ and W½E½;
Sec. 26, NE¼ and SE¼.

This order shall be subject to existing withdrawals for other than national forest purposes so far as they affect any of the above-described lands, and shall take precedence over, but not otherwise affect the existing reservation of the lands for national forest purposes.

ROGER C. ERNST,
Assistant Secretary of the Interior.

NOVEMBER 19, 1957.

[F. R. Doc. 57-9708; Filed, Nov. 22, 1957; 8:45 a. m.]

PROPOSED RULE MAKING

DEPARTMENT OF AGRICULTURE

Agricultural Marketing Service

[7 CFR Part 970]

IRISH POTATOES GROWN IN MAINE

NOTICE OF PROPOSED REVISION OF FISCAL PERIOD, AND PROPOSED EXPENSES AND RATE OF ASSESSMENT FOR THE 1957–58 FISCAL PERIOD

Notice is hereby given that the Secretary of Agriculture is considering the approval of the beginning and ending dates of the fiscal period and of the expenses and rate of assessment for the 1957–58 fiscal period, hereinafter set forth, which were recommended by the Maine Potato Administrative Committee established pursuant to Marketing Agreement No. 122 and Order No. 70 (7 CFR Part 970), regulating the handling of Irish potatoes grown in the State of Maine, issued under the Agricultural Marketing Agreement Act of 1937, as amended (48 Stat. 31, as amended; 7 U. S. C. 601 et seq.).

Consideration will be given to any data, views, or arguments pertaining thereto, which are filed with the Director, Fruit and Vegetable Division, Agricultural Marketing Service, United States Department of Agriculture, Washington 25, D. C., not later than 15 days following publication of this notice in the FEDERAL REGISTER.

The proposals are as follows:

Revise the provisions in § 970.201 *Fiscal period* and § 970.205 *Expenses and rate of assessment*, to read as follows:

§ 970.201 *Fiscal period.* The initial fiscal period shall begin on the effective date of this part, August 30, 1954, and end July 31, 1955, both dates inclusive. Thereafter, and until August 1, 1957, each fiscal period shall begin on August 1 of each year and end July 31 of the following year, both dates inclusive. The fiscal period beginning August 1, 1957, shall end August 31, 1958. Thereafter, each fiscal period shall begin September 1 of each year and end on August 31 of the following year, both dates inclusive.

§ 970.205 *Expenses and rate of assessment.* (a) The reasonable expenses that are likely to be incurred by the Maine Potato Administrative Committee, established pursuant to Marketing Agreement No. 122 and Order No. 70, to enable such committee to perform its functions pursuant to the provisions of the aforesaid marketing agreement and order, during the fiscal period beginning August 1, 1957, and ending August 31, 1958, will amount to $64,850.00.

(b) The rate of assessment to be paid by each handler pursuant to Marketing Agreement No. 122 and Order No. 70 with respect to potatoes handled by him as the first handler thereof during said fiscal period shall be: $1.25 per railroad car; $1.25 per truckload of 36,000 pounds or more; 80 cents per truckload of not less than 25,000 pounds, up to, but not including, 36,000 pounds; and 50 cents per truckload of less than 25,000 pounds.

(c) The terms used in this section shall have the same meaning as when used in Marketing Agreement No. 122 and Order No. 70.

Dated: November 20, 1957.

[SEAL] S. R. SMITH,
Director,
Fruit and Vegetable Division.

[F. R. Doc. 57-9734; Filed, Nov. 22, 1957; 8:56 a. m.]

[7 CFR Part 980]

[Docket No. AO-301]

MILK IN WESTERN COLORADO MARKETING AREA

NOTICE OF HEARING ON PROPOSED MARKETING AGREEMENT AND ORDER

Pursuant to the provisions of the Agricultural Marketing Agreement Act of 1937, as amended (7 U. S. C. 601 et seq.), and the applicable rules of practice and

procedure governing the formulation of marketing agreements and marketing orders (7 CFR Part 900), notice is hereby given of a public hearing to be held in the Civic Auditorium, Room 250, City Hall, Grand Junction, Colorado, beginning at 10:00 a. m., local time, on December 10, 1957, with respect to a proposed marketing agreement and order to regulate the handling of milk in the Western Colorado marketing area.

This public hearing is for the purpose of receiving evidence with respect to economic and marketing conditions, which relate to the proposed marketing agreement and order, hereinafter set forth, and any appropriate modifications thereof; and for the purpose of determining (1) whether the handling of milk in the area proposed for regulation is in the current of interstate or foreign commerce or directly burdens, obstructs, or affects interstate or foreign commerce, (2) whether there is need for a marketing agreement or order regulating the handling of milk in the area, and (3) whether provisions specified in the proposals or some other provisions appropriate to the terms of the Agricultural Marketing Agreement Act of 1937, as amended, will tend to effectuate the declared policy of the act.

The proposals set forth below have not received the approval of the Secretary of Agriculture.

Marketing agreement and order regulating the handling of milk in the Western Colorado Marketing Area proposal by: Western Colorado Milk Producers Association.

DEFINITIONS

§ 980.1 *Act.* "Act" means Public Act No. 10, 73d Congress, as amended by the Agricultural Marketing Agreement Act of 1937, as amended (7 U. S. C. 601 et seq.).

§ 980.2 *Secretary.* "Secretary" means the Secretary of Agriculture or any officer or employee of the United States authorized to exercise the powers or to perform the duties of the Secretary of Agriculture.

§ 980.3 *Department.* "Department" means the United States Department of Agriculture or such other Federal agency authorized to perform the price reporting functions specified herein.

§ 980.4 *Person.* "Person" means any individual, partnership, corporation, association, or any other business unit.

§ 980.5 *Cooperative association.* "Cooperative association" means any cooperative association of producers which the Secretary determines after application by the association:

(a) To be qualified under the provisions of the Act of Congress of February 18, 1922, as amended, known as the "Capper-Volstead Act";

(b) To have full authority in the sale of milk of its members; and

(c) To be engaged in making sales or marketing milk or its products for its members.

§ 980.6 *Western Colorado Marketing Area.* "Western Colorado Marketing Area" hereinafter called the "marketing area" means all territory within the counties of Delta, Dolores, Garfield, Mesa, Gunnison, Hinsdale, La Plata, Montezuma, Montrose, Ouray, San Juan, and San Miguel, all in the State of Colorado.

§ 980.7 *Producer.* "Producer" means any person, other than a producer-handler, who produces milk in compliance with fluid milk product requirements of a duly constituted health authority having jurisdiction with the marketing area, and whose milk is received at a pool plant.

§ 980.8 *Producer-handler.* "Producer-handler" means any person who produces milk and operates a pasteurizing plant and who receives no milk from other dairy farmers and distributes less than 1,000 pounds per day of fluid milk products on routes in the marketing area.

§ 980.9 *Handler.* "Handler" means any person in his capacity as the operator of a pasteurizing plant or a supply plant.

§ 980.10 *Pasteurizing plant.* "Pasteurizing plant" means a plant which pasteurizes and packages fluid milk products and which is:

(a) Located in the marketing area and disposes of such products on routes in the marketing area; or

(b) Located outside the marketing area and disposes of not less than 1,000 pounds per day of such products on routes in the marketing area.

§ 980.11 *Supply plant.* "Supply plant" means a plant, other than a pasteurizing plant, from which fluid milk products are supplied to a pasteurizing plant.

§ 980.12 *Pool plant.* "Pool plant" means:

(a) A pasteurizing plant; or

(b) A supply plant, not less than 50 percent of whose milk is shipped to pasteurizing plants during the month.

§ 980.13 *Nonpool plant.* "Nonpool plant" means any milk receiving, manufacturing, or processing plant other than a pool plant.

§ 980.14 *Producer milk.* "Producer milk" means skim milk or butterfat contained in milk received from producers.

§ 980.15 *Other source milk.* "Other source milk" means all skim milk and butterfat in milk other than producer milk.

§ 980.16 *Fluid milk product.* "Fluid milk product" means milk (including frozen or concentrated milk), chocolate milk, chocolate drink, fluid cream (sweet or sour), yoghurt, egg nog, skim milk and fortified skim milk.

§ 980.17 *Route.* "Route" means any delivery to retail or wholesale outlets (including delivery by a vendor or a sale from a plant or plant store) of any fluid milk product, other than a delivery to a pool plant or nonpool plant.

§ 980.18 *Base milk.* "Base milk" means producer milk received by a handler from a producer which is not in excess of such producer's daily base determined pursuant to § 980.100 multiplied by the number of days in the month.

§ 980.19 *Excess milk.* "Excess milk" means producer milk received by a handler from a producer which is in excess of base milk.

§ 980.20 *Chicago butter price.* "Chicago butter price" means the simple average as computed by the market administrator of the daily wholesale selling prices (using the midpoint of any price range as one price) per pound of 92-score bulk creamery butter at Chicago, as reported by the Department for the period from the 26th day of the immediately preceding month through the 25th day of the current month.

§ 980.21 *Chicago powder price.* "Chicago powder price" means the carlot price per pound of nonfat dry milk, spray process, for human consumption, f. o. b. manufacturing plants in the Chicago area, as published by the Department for the period from the 26th day of the immediately preceding month through the 25th day of the current month.

MARKET ADMINISTRATOR

§ 980.30 *Designation.* The agency for the administration of this order shall be a "market administrator" selected by the Secretary. He shall be entitled to such compensation as may be determined by the Secretary and shall be subject to removal at his discretion.

§ 980.31 *Powers.* The market administrator shall have the following powers with respect to this order:

(a) To administer its terms and provisions;

(b) To make rules and regulations to effectuate its terms and provisions;

(c) To receive, investigate, and report to the Secretary complaints of violations; and

(d) To recommend amendments to the Secretary.

§ 980.32 *Duties.* The market administrator shall perform all duties necessary to administer the terms and provisions of this order, including, but not limited to the following:

(a) Within 30 days following the date on which he enters upon his duties, or such lesser period as may be prescribed by the Secretary, execute and deliver to the Secretary a bond, effective as of the date on which he enters upon his duties and conditioned upon the faithful performance of such duties, in an amount and with surety thereon satisfactory to the Secretary;

(b) Employ and fix the compensation of such persons as may be necessary to enable him to administer its terms and provisions;

(c) Obtain a bond in a reasonable amount and with reasonable surety thereon covering each employee who handles funds entrusted to the market administrator;

(d) Pay out of the funds received pursuant to § 980.96:

(1) The cost of his bond and the bonds of his employees;

(2) His own compensation; and

(3) All other expenses except those incurred under § 980.95 necessarily in-

curred by him in the maintenance and functioning of his office and in the performance of his duties;

(e) Keep such books and records as will clearly reflect the transactions provided for in this order, and, upon request by the Secretary, surrender the same to such other person as the Secretary may designate;

(f) Publicly disclose to handlers and producers, at his discretion, unless otherwise directed by the Secretary, by posting in a conspicuous place in his office and by such other means as he deems appropriate, the name of any person who, after the date upon which he is required to perform such acts, has not made reports or made available records and facilities pursuant to § 980.40 through § 980.43, or payments pursuant to § 980.90 through § 980.96;

(g) Submit his books and records to examination by the Secretary and furnish such information and reports as may be requested by the Secretary;

(h) On or before the 10th day after the end of each month, report to each cooperative association which so requests the amount and class utilization of producer milk delivered by members of such association to each handler receiving such milk. For the purpose of this report, the milk so received shall be prorated to each class in accordance with the total utilization of producer milk by such handler;

(i) Verify all reports and payments of each handler, by audit of such handler's records and the records of any other handler or person upon whose utilization the classification of skim milk and butterfat for such handler depends; and by such other means as are necessary;

(j) Prepare and make available for the benefit of producers, consumers, and handlers, general statistics and information which do not reveal confidential information; and

(k) On or before the date specified, publicly announce by posting in a conspicuous place in his office and by such other means as he deems appropriate, and mail to each handler at his last known address, a notice of each of the following:

(1) The 6th day of each month, the Class I price and the butterfat differential for the month; computed pursuant to §§ 80.61 and 80.62, respectively;

(2) The 6th day of each month, the Class II price and the Class III price and the butterfat differential for the preceding month, computed pursuant to §§ 80.61 and 80.62, respectively;

(3) The 10th day of each month, the uniform price for producer milk computed pursuant to § 80.81, the base price and the excess price computed pursuant to § 80.82, and the butterfat differential computed pursuant to § 80.83, all for the preceding month.

REPORTS, RECORDS, AND FACILITIES

§ 980.40 *Reports of sources and utilization.* On or before the 7th day after the end of each month, each handler, except a producer-handler, shall report for each of his pool plants for such month to the market administrator in the detail and on forms prescribed by the market administrator as follows:

(a) The quantities of skim milk and butterfat contained in:

(1) Producer milk;

(2) Fluid milk products received from other pool plants;

(3) Other source milk;

(4) Inventories of fluid milk products on hand at the beginning of the month; and

(b) The utilization of all skim milk and butterfat required to be reported pursuant to paragraph (a) of this section, including separate statements as to the disposition of Class I milk on routes entirely outside the marketing area, and inventories of fluid milk products on hand at the end of the month.

(c) On or before the 7th day after the end of each month, each handler shall report to the market administrator in the detail and on the forms prescribed by the market administrator for each of his nonpool plants from which fluid milk products are disposed of during the month on routes in the marketing area the quantities of skim milk and butterfat contained in:

(1) Milk received from farmers who produce Grade A milk;

(2) Fluid milk products received from pool plants;

(3) Milk or milk products received from any other source;

(4) Inventories of fluid milk products on hand at the beginning of the month;

(5) The utilization of all skim milk and butterfat required to be reported;

(6) The amount of gross payment made to farmers who produce Grade A milk; and

(7) Such other information as the market administrator may prescribe.

§ 980.41 *Other reports.* (a) Each producer-handler shall make reports to the market administrator at such time and in such manner as the market administrator may prescribe.

(b) Each handler, except a producer-handler, shall report to the market administrator in the detail and on forms prescribed by the market administrator;

(1) On or before the 7th day of each month, the aggregate quantity of base and excess milk received at his pool plants for the preceding month;

(2) On or before the 20th day after the end of the month, for each of his pool plants, his producer payroll for that month, which shall show for each producer;

(i) His name and address;

(ii) The total pounds of milk received from such producer, including the pounds of base milk;

(iii) The days for which milk was received from such producer;

(iv) The average butterfat content of such milk; and

(v) The net amount of the handler's payment to the producer, together with the price paid and the amount and nature of any deductions;

(3) On or before the first day other source milk is received in the form of a fluid milk product at his pool plants his intention to receive such product, and on or before the last day such product is received, his intention to discontinue receipt of such product; and

(4) Such other information with respect to his sources and utilization of butterfat and skim milk, and at such times, as the market administrator shall prescribe.

§ 980.42 *Records and facilities.* Each handler shall maintain and make available to the market administrator during the usual hours of business such accounts and records of his operations and such facilities as are necessary for the market administrator to verify or establish the correct data for each month, including, but not limited to:

(a) The receipt and utilization of all skim milk and butterfat handled in any form;

(b) The weights and tests for butterfat and other content of all products handled;

(c) The pounds of skim milk and butterfat contained in or represented by all items of products on hand at the beginning and end of each month; and

(d) Payments to producers, including any deductions, and the disbursement of money so deducted.

§ 980.43 *Retention of records.* All books and records required under this order to be made available to the market administrator shall be retained by the handler for a period of three years to begin at the end of the month to which such books and records pertain: *Provided*, That if, within such three-year period, the market administrator notifies the handler in writing that the retention of such books and records, or of specified books and records, is necessary in connection with a proceeding under section 8c (15) (A) of the act or a court action specified in such notice, the handler shall retain such books and records, or specified books and records, until further notification from the market administrator. In either case, the market administrator shall give further written notification to the handler promptly upon the termination of the litigation or when the records are no longer necessary in connection therewith.

CLASSIFICATION OF MILK

§ 980.50 *Skim milk and butterfat to be classified.* The skim milk and butterfat to be reported for pool plant pursuant to § 980.40 shall be classified by the market administrator, pursuant to the provisions of § 980.51 through § 980.55.

§ 980.51 *Classes of utilization.* Subject to the conditions set forth in § 980.52 through § 980.55, the classes of utilization shall be as follows:

(a) *Class I milk.* Class I milk shall be all skim milk (including reconstituted and concentrated nonfat milk solids) and butterfat:

(1) Disposed of from the plant in the form of fluid milk products, except those classified pursuant to paragraph (c) (3) of this section; and

(2) Not specifically accounted for as Class II milk or Class III milk;

(b) *Class II milk.* Class II milk shall be all skim milk (including reconstituted and concentrated nonfat milk solids) and

butterfat used to produce ice cream, imitation ice cream, frozen desserts, ice cream mix, imitation ice cream mix, cottage cheese, frozen dessert mix, and evaporated milk, in hermetically sealed cans;

(c) *Class III milk.* Class III milk shall be all skim milk and butterfat:

(1) Used to produce any product other than a fluid milk product or a Class II product;

(2) Contained in inventories of fluid milk products on hand at the end of the month;

(3) Disposed of as skim milk for livestock feed; and

(4) Dumped as skim milk if with the prior approval of the market administrator.

§ 980.52 *Responsibility of handlers.* All skim milk and butterfat to be classified pursuant to this order shall be classified as Class I milk, unless the handler who received such skim milk and butterfat established to the satisfaction of the market administrator that it should be classified as Class II milk or Class III milk.

§ 980.53 *Transfers.* (a) Skim milk and butterfat transferred to a pool plant of another handler (except a producer-handler) in the form of fluid milk products shall be classified so as to result in the maximum assignment of the producer milk of both handlers to Class I milk. Any additional amounts of skim milk and butterfat shall be classified as Class I milk unless the operators of both plants claim utilization thereof in another class in their reports submitted pursuant to § 980.40: *Provided,* That the skim milk or butterfat so assigned to Class II milk or Class III milk shall be limited to the respective amounts thereof remaining at the pool plants of the receiving handler after the subtraction of other source milk pursuant to § 980.55;

(b) Skim milk and butterfat transferred to the plant of a producer-handler in the form of fluid milk products, shall be classified as Class I milk;

(c) Skim milk and butterfat transferred in bulk form as milk, skim milk, or cream to a nonpool plant shall be classified as Class I milk unless:

(1) The transferee-plant is located less than 150 miles from the Delta County Court House by the shortest hard-surfaced highway distance, as determined by the market administrator;

(2) The transferring handler claims classification in Class II milk or Class III milk in his report;

(3) The operator of the nonpool plant maintains books and records showing the utilization of all skim milk and butterfat at such plant which are made available if requested by the market administrator for the purpose of verification; and

(4) Not less than an equivalent amount of skim milk and butterfat was actually utilized in the nonpool plant in the use indicated in such report: *Provided,* That if it is found that an equivalent amount of skim milk and butterfat was not actually used in such plant, in such indicated use, the quantity transferred in excess of such actual use shall be classified as Class I milk.

§ 980.54 *Computation of skim milk and butterfat in each class.* For each month, the market administrator shall correct for mathematical and other obvious errors, the report submitted by each handler pursuant to § 980.40 and compute the total pounds of skim milk and butterfat respectively, in Class I milk, Class II milk and Class III milk at all of the pool plants of such handler: *Provided,* That the skim milk contained in any product utilized, produced or disposed of by the handler during the month shall be considered to be an amount equivalent to the nonfat milk solids contained in such product, plus all of the water originally associated with such solids.

§ 980.55 *Allocation of skim milk and butterfat classified.* (a) The pounds of skim milk remaining in each class after making the following computations with respect to the pool plants of each handler, shall be the pounds of skim milk in such class allocated to the producer milk of such handler:

(1) Subtract from the pounds of skim milk in series beginning with Class III milk the pounds of skim milk in other source milk;

(2) Subtract from the pounds of skim milk remaining in the lowest available class the pounds of skim milk contained in inventory of fluid milk products on hand at the beginning of the month;

(3) Subtract the pounds of skim milk in fluid milk products received from pool plants of other handlers from the pounds of skim milk remaining in the class to which assigned, pursuant to § 980.53; and

(4) If the pounds of skim milk remaining in all classes exceed the pounds of skim milk in producer milk, subtract such excess from the pounds of skim milk remaining in the various classes in series beginning with Class III milk. Any amount so subtracted shall be called "overage";

(b) Determine the pounds of butterfat in each class to be allocated to producer milk in the manner prescribed in paragraph (a) of this section for determining the allocation of skim milk to producer milk;

(c) Add the pounds of skim milk and the pounds of butterfat in each class calculated pursuant to paragraphs (a) and (b) of this section and determine the percentage of butterfat in the producer milk allocated to each class.

MINIMUM PRICES

§ 980.60 *Basic formula price.* The basic formula price for each month to be used in determining the class prices, set forth in § 980.61 shall be the higher of the prices computed pursuant to paragraphs (a) and (b) of this section, rounded to the nearest cent:

(a) Determine the average of the basic, or field prices paid or to be paid per hundredweight for milk of 3.5 percent butterfat content received from farmers during the month at the following plants or places for which prices have been reported to the market administrator or the Department:

Located at:
Coopersville, Mich.
Mt. Pleasant, Mich.
Sparta, Mich.
Wayland, Mich.
Belleville, Wis.
Manitowoc, Wis.
New Glarus, Wis.
New London, Wis.
Oconomowoc, Wis.
Orfordville, Wis.
Richland Center, Wis.
West Bend, Wis.

(b) The price per hundredweight computed as follows:

(1) Multiply by 4.24 the Chicago butter price;

(2) Multiply by 8.2 the Chicago powder price;

(3) From the sum of the results arrived at under subparagraphs (1) and (2) of this paragraph subtract 81 cents.

§ 980.61 *Class prices.* Subject to the provisions of § 980.62 and § 980.63, each handler shall pay producers at the time and in the manner set forth in § 980.90 not less than the following prices per hundredweight of milk of 3.5 percent butterfat content:

(a) *Class I milk.* The price for Class I milk shall be the basic formula price for the preceding month plus $2.20;

(b) *Class II milk.* The price for Class II milk shall be the basic formula price for the current month plus 60 cents;

(c) *Class III milk.* The price for Class III milk shall be the price computed pursuant to § 980.60 (b) for the current month.

§ 980.62 *Butterfat differentials to handlers.* For each class of milk containing more or less than 3.5 percent butterfat, the class prices calculated pursuant to § 980.61 shall be increased or decreased respectively, for each one-tenth percent of butterfat by an amount computed by multiplying the Chicago butter price for the preceding month by 1.20 and dividing the result by 10.

§ 980.63 *Location differentials to handlers.* For milk received from producers at a pool plant located outside the marketing area, and which is assigned to Class I milk, the price specified in § 980.61 (a) shall be reduced at the rate set forth in the following schedule, calculated from the Delta County Court House by the shortest hard-surfaced highway distance as determined by the market administrator:

Shortest highway distance from Delta County Court House (miles):	*Location adjustment (dollars per cwt.)*
0–25	.0
Over 25–50	.085
Over 50–75	.1275
Over 75–100	.17

And $0.17 for each additional 10 miles.

§ 980.64 *Use of equivalent prices.* If for any reason a price quotation required by this order for computing class prices or for other purposes is not available in the manner described, the market administrator shall use a price determined by the Secretary to be equivalent to the price which is required.

APPLICATION OF PROVISIONS

§ 980.70 *Producer-handler.* Sections 980.50 through 980.55, 980.60 through

980.64, 980.80 through 980.85, 980.90 through 980.96, and 980.100 through 980.102 shall not apply to producer-handler.

§ 980.71 *Plants subject to other federal orders.* Upon application to the market administrator and a subsequent determination by the Secretary, any plant specified in paragraph (a) of this section shall be treated as a nonpool plant, except that the operator of such plant shall, with respect to the total receipts and disposition of skim milk and butterfat at the plant, make reports to the market administrator at such time and in such manner as he may require and allow verification of such reports by the market administrator:

(a) Any plant which:

(1) Would otherwise be subject to the classification and pricing provisions of another order issued pursuant to the act; and

(2) Does not dispose of a greater volume of Class I milk on routes in Western Colorado, marketing area than in the marketing area regulated pursuant to such other order.

DETERMINATION OF UNIFORM PRICES TO PRODUCERS

§ 980.80 *Computation of the value of producer milk for each handler.* For each month, the market administrator shall compute the value of producer milk for each handler as follows:

(a) Multiply the quantity of producer milk in each class computed pursuant to § 980.55 by the applicable class price (adjusted pursuant to § 980.63) and total the resulting amounts;

(b) Add an amount computed by multiplying the pounds of any overage deducted from any class pursuant to § 980.55 (a) (4) and (b) by the applicable class price;

(c) Add the amount computed by multiplying the difference between the Class III price and the Class I price by the hundredweight of skim milk and butterfat remaining in Class III milk after the calculations pursuant to § 980.55 (a) (3) and (b) for the preceding month or the hundredweight of skim milk and butterfat subtracted from Class I milk pursuant to § 980.55 (a) (2) and (b) for the current month, whichever is less;

(d) Except for milk received from a nonpool plant subject to the pricing provisions of another federal order, add an amount computed by multiplying the hundredweight of skim milk and butterfat subtracted from Class I milk pursuant to § 980.55 (a) (1) by the rate determined by subtracting the Class III price from the Class I price adjusted by the location differential, pursuant to § 980.63: *Provided,* That this provision shall not apply for months for which in excess of 95 percent of producer milk is classified as Class I milk.

§ 980.81 *Computation of the uniform price.* The market administrator shall compute the uniform price per hundredweight of producer milk of 3.5 percent butterfat content, as follows:

(a) Combine into one total the values computed pursuant to § 980.80 for the producer milk of all handlers who submitted reports prescribed in § 980.40, and who are not in default of payments pursuant to § 980.90 and § 980.92;

(b) Subtract, if the average butterfat content of the producer milk included under paragraph (a) of this section is greater than 3.5 percent, or add, if such average butterfat content is less than 3.5 percent, an amount computed as follows: Multiply the amount by which the average butterfat content of such milk varies from 3.5 percent by the butterfat differential pursuant to § 980.83 and multiply the result by the total hundredweight of such milk;

(c) Add an amount equal to the sum of the deduction to be made from producer payments for location differentials pursuant to § 980.84;

(d) Add an amount equal to one-half of the unobligated balance on hand in the producer-settlement fund;

(e) Divide the resulting amount by the total hundredweight of producer milk included under paragraph (a) of this section; and

(f) Subtract not less than 4 cents nor more than 5 cents to restore the balance in the producer-settlement fund. The resulting figure shall be the uniform price per hundredweight of producer milk of 3.5 percent butterfat content.

§ 980.82 *Computation of the uniform prices for base milk and excess milk.* The market administrator shall compute the uniform price per hundredweight for base milk and for excess milk each of 3.5 percent butterfat content, as follows:

(a) Compute the aggregate value of excess milk for all handlers who submitted reports pursuant to § 980.40 and who are not in default of payments pursuant to § 980.90 or § 980.92 by multiplying the hundredweight of such excess milk by the Class III price: *Provided,* That if the total amount of excess milk exceeds the amount of Class III milk allocated to producer milk, the remaining amount shall be multiplied by the next lowest Class price available for such utilization;

(b) The uniform price for excess milk shall be the weighted average price of the values computed pursuant to paragraph (a) of this section less the amount specified in § 980.81 (f).

(c) Subtract the total value of excess milk as determined pursuant to paragraph (a) of this section from the total value of producer milk computed pursuant to § 980.81 (a) and (b);

(d) Divide the amount calculated pursuant to paragraph (c) of this section by the total hundredweight of base milk included in these computations; and

(e) Subtract the amount specified by § 980.81 (f) from the price computed pursuant to paragraph (d) of this section. The resulting figure shall be the uniform price for base milk of 3.5 percent butterfat content.

§ 980.83 *Butterfat differential to producers.* The applicable uniform prices to be paid each producer shall be increased or decreased for each one-tenth of one percent which the average butterfat content of his milk is above or below 3.5 percent respectively, at a rate determined by multiplying the Chicago butter price by 1.2 and dividing the result by 10.

§ 980.84 *Location differential to producers.* The applicable uniform prices computed pursuant to § 980.81 and § 980.82 to be paid for producer milk received at a pool plant located outside the marketing area shall be reduced according to the location of the pool plant where such milk was received, at the rates set forth in § 980.63.

§ 980.85 *Notification of handlers.* On or before the 10th day after the end of each month, the market administrator shall mail to each handler, at his last known address, a statement showing:

(a) The amount and value of his producer milk in each class and the total thereof;

(b) The amount and value of his base milk and excess milk, respectively, and the totals thereof;

(c) The uniform prices computed pursuant to § 980.81 and § 980.82 and the producer butterfat differential computed pursuant to § 980.83;

(d) The amounts to be paid by such handler pursuant to §§ 980.92, 980.95, and 980.96, and the amount due such handler pursuant to § 980.93.

PAYMENTS

§ 980.90 *Time and method of payment for producer milk.* (a) Except as provided in paragraph (b) of this section, each handler shall make payment to each producer from whom milk is received as follows:

(1) On or before the 15th day of the following month, an amount equal to not less than the uniform prices pursuant to §§ 980.81 and 980.82 adjusted by the butterfat and location differentials to producers, multiplied by the hundredweight of base milk and excess milk received from each producer, subject to the following adjustments:

(i) Less marketing service deductions made pursuant to § 980.95;

(ii) Plus or minus adjustments for errors made in previous payments to such producer; and

(iii) Less advance payments and proper deductions authorized in writing by such producer: *Provided,* That if by the date specified, such handler has not received full payment from the market administrator pursuant to § 980.93 for such month, he may reduce pro rata his payments to producers by not more than the amount of such underpayment. Payments to producers shall be completed thereafter not later than the date for making payments pursuant to this paragraph next following after the receipt of the balance due from the market administrator;

(2) On or before the last day of each month, an amount equal to not less than the Class II price for the previous month

(b) In the case of a cooperative association, which the market administrator determines is authorized by its members to collect payment for their milk, and which has requested of any handler in writing, such handler shall on or before the second day prior to the date on which payments are due individual pro-

ducers, pay the cooperative association for milk received during the month from the producer-members of such association as determined by the market administrator, an amount equal to not less than the total due such producer-members as determined pursuant to paragraph (a) of this section; and

(c) Each handler who received milk from producers for which payment is to be made to a cooperative association pursuant to paragraph (b) of this section shall report to such cooperative association or to the market administrator for transmittal to such cooperative association for each such producer as follows:

(1) On or before the 10th day of the month, the total pounds of milk received during the preceding month;

(2) The pounds of milk received each day, together with the butterfat content of such milk;

(3) The total pounds of base and excess milk;

(4) The amount or rate and nature of any authorized deductions to be made from payments; and

(5) The amount and nature of payments due pursuant to § 980.94.

§ 980.91 *Producer-settlement fund.* The market administrator shall establish and maintain a separate fund known as the "producer-settlement fund" into which he shall deposit all payments made by handlers pursuant to § 980.92 and out of which he shall make all payments pursuant to § 980.93: *Provided,* That any payments due to any handler shall be offset by any payments due from such handler.

§ 980.92 *Payments to the producer-settlement fund.* On or before the 12th day after the end of each month:

(a) Each handler who operates a pool plant shall pay to the market administrator any amount by which the value of his producer milk as computed pursuant to § 980.80, is greater than the amount owed by him for such milk at the appropriate uniform prices determined pursuant to § 980.82, adjusted by the producer butterfat and location differentials; and

(b) Each handler who operates a nonpool plant except those designated pursuant to § 980.71, shall pay to the market administrator an amount, resulting from the computation of subparagraphs (1) or (2) of this paragraph whichever is less:

(1) Multiply the total hundredweight of butterfat and skim milk disposed of as Class I milk from such plant in the marketing area by the difference between the price for Class I milk and the price for Class III milk; or

(2) An amount determined as the value of milk to be paid producers if such handler operated a pool plant less the gross payments made by such handler to farmers delivering Grade A milk for the month.

§ 980.93 *Payments out of the producer-settlement fund.* On or before the 13th day after the end of each month, the market administrator shall pay to each handler any amount by which the total value of his producer milk, computed pursuant to § 980.80 is less than the amount owed by him for such milk at the appropriate uniform prices adjusted by the producer butterfat and location differentials. If at such time the balance in the producer-settlement fund is insufficient to make all payments pursuant to this section the market administrator shall reduce uniformly such payments and shall complete such payments as soon as the funds are available.

§ 980.94 *Adjustment of accounts.* Whenever audit by the market administrator of any reports, books, records, or accounts or other verification discloses errors resulting in moneys due (a) the market administrator from a handler; (b) a handler from the market administrator; or (c) any producer or cooperative association from a handler, the market administrator shall promptly notify such handler of any amount so due and payment thereof shall be made on or before the next date for making payments set forth in the provisions under which such error occurred.

§ 980.95 *Marketing services.* (a) Except as set forth in paragraph (b) of this section, each handler, in making payments to producers for milk pursuant to § 980.90, shall deduct 6 cents per hundredweight, or such lesser amount as may be prescribed by the Secretary, and shall pay such deductions to the market administrator on or before the 15th day after the end of the month. Such money shall be used by the market administrator to provide market information and to check the accuracy of the testing and weighing of their milk for producers who are not receiving such services from a cooperative association;

(b) In the case of producers who are members of a cooperative association which the Secretary has determined is actually performing the services set forth in paragraph (a) of this section, each handler shall (in lieu of the deduction specified in paragraph (a) of this section), make such deductions from the payments to be made to producers as may be authorized by the membership agreement or marketing contract between the cooperative association and its members. On or before the 15th day after the end of each month, the handler shall pay the aggregate amount of such deductions to the cooperative association, furnishing a statement showing the amount of the deductions and the quantity of milk on which the deduction was computed from each producer.

§ 980.96 *Expense of administration.* On or before the 15th day after the end of each month, each handler shall pay to the market administrator 5 cents or such lesser amount as the Secretary may prescribe, for each hundredweight of butterfat and skim milk contained in:

(a) Producer milk;

(b) Other source milk allocated to Class I milk pursuant to § 980.55 (a) (1) and (b); and

(c) All other source milk handled by nonpool plants as described in § 980.40 (c).

§ 980.97 *Termination of obligations.* The provisions of this section shall apply to any obligations under this order for the payment of money:

(a) The obligation of any handler to pay money required to be paid under the terms of this order shall, except as provided in paragraphs (b) and (c) of this section, terminate 2 years after the last day of the month during which the market administrator received the handler's utilization report on the milk involved in such obligation, unless within such 2-year period the market administrator notifies the handler in writing that such money is due and payable. Service of such notice shall be complete upon mailing to the handler's last known address, and it shall contain, but need not be limited to, the following information:

(1) The amount of the obligation;

(2) The months during which the milk, with respect to which the obligation exists, was received or handled; and

(3) If the obligation is payable to one or more producers or to a cooperative association, the names of such producer or cooperative associations, or if the obligation is payable to the market administrator, the account for which it is to be paid;

(b) If a handler fails or refuses, with respect to any obligation under this order, to make available to the market administrator or his representatives all books and records required by this order to be made available, the market administrator may, within the 2-year period provided for in paragraph (a) of this section, notify the handler in writing of such failure or refusal. If the market administrator so notifies a handler, the said 2-year period, with respect to such obligation, shall not begin to run until the first day of the month following the month during which all such books and records pertaining to such obligations are made available to the market administrator or his representative;

(c) Notwithstanding the provisions of paragraphs (a) and (b) of this section a handler's obligation under this order to pay money shall not be terminated with respect to any transaction involving fraud or willful concealment of a fact, material to the obligation, on the part of the handler against whom the obligation is sought to be imposed; and

(d) Any obligation on the part of the market administrator to pay a handler any money which such handler claims to be due him under the terms of this order shall terminate 2 years after the end of the month during which the payment (including deduction or offset by the market administrator) was made by the handler, if a refund on such payment is claimed unless such handler, within the applicable period of time, files, pursant to section 8c (15) (A) of the act, a petition claiming such money.

BASE AND EXCESS

§ 980.100 *Determination of daily base.* The daily base of each producer which shall be applicable during the months of the following calendar year, shall be determined by the market administrator for each year as follows:

(a) For each producer from whom milk was purchased by a handler during the months of July through December, the daily base shall be computed by dividing such producer's total deliveries of milk to handlers during such 6-month

period by the number of days for which milk was delivered by such producer.

(b) For each producer from whom milk was not received by a handler during each of the 6 months of the base forming period or who commences the delivery of milk to a handler after the beginning of the base forming period, the daily base shall be computed for the first 3 months or fractional part thereof by multiplying his average daily production for each month by .40 and thereafter until such producer has regularly established a base by .65.

(c) Any producer for whom a base has been established pursuant to paragraph (a) of this section, may relinquish such base for the following year by notifying the market administrator prior to February 8 of each year. The daily base of such producers shall then be determined in the same manner as for a new producer.

§ 980.101 *Base rules.* (a) A base shall apply to deliveries of milk by the producer for whose account that milk was delivered during the base forming period;

(b) Bases may be transferred only if the market administrator has been notified in writing prior to the last day of the delivery period in which such base is to be transferred to the person named in such notice and only under the following circumstances:

(1) In the event of the death, retirement, or entry into the military service of a producer, the entire base may be transferred to a member of such producer's immediate family who carries on the dairy operation;

(2) If a base is held jointly and such joint holding is terminated, the entire base may be transferred to one of the joint holders.

§ 980.102 *Announcement of established basis.* On or before January 25 of each year the market administrator shall notify each producer, and the handler receiving milk from such producer, of the producer's daily base for the current year.

EFFECTIVE TIME, SUSPENSION, OR TERMINATION

§ 980.110 *Effective time.* The provisions of this order, or any amendment thereto, shall become effective at such time as the Secretary may declare and shall continue in force until suspended or terminated.

§ 980.111 *Suspension or termination.* The Secretary shall, whenever he finds that any or all provisions of this order, or any amendment thereto, obstruct or do not tend to effectuate the declared policy of the act, terminate or suspend the operation of any or all provisions of this order or any amendment thereto.

§ 980.112 *Continuing obligations.* If, upon the suspension or termination of any or all provisions of this order, or any amendment thereto, there are any obligations thereunder the final accrual or ascertainment of which requires further acts by any person (including the market administrator), such further acts shall be performed notwithstanding such suspension or termination.

§ 980.113 *Liquidation.* Upon the suspension or termination of any or all provisions of this order, the market administrator, or such other liquidating agent as the Secretary may designate, shall, if so directed by the Secretary, liquidate the business of the market administrator's office, dispose of all property in his possession or control, including accounts receivable, and execute and deliver all assignments or other instruments necessary or appropriate to effectuate any such disposition. If a liquidating agent is so designated, all assets, books and records of the market administrator shall be transferred promptly to such liquidating agent. If upon such liquidation, the funds on hand exceed the amounts required to pay outstanding obligations of the office of the market administrator and to pay necessary expenses of liquidating and distribution, such excess shall be distributed to contributing handlers and producers in an equitable manner.

MISCELLANEOUS PROVISIONS

§ 980.120 *Agents.* The Secretary may, by designation in writing, name any officer or employee of the United States to act as his agent and representative in connection with any of the provisions of this order.

§ 980.121 *Separability of provisions.* If any provisions of this order, or its application to any person or circumstances, is held invalid, the application of such provision, and of the remaining provision of this order, to other persons or circumstances shall not be affected thereby.

By Crescent Creamery, Grand Junction, Colorado.

1. Define the Western Colorado Marketing area to include the area in Delta, Montrose and Mesa counties only.

2. That § 980.100 (a) be changed to read:

(a) For each producer from whom milk was received by a handler during the 4 months of least production (expressed as a percentage of total Class I milk utilization for the market), the daily base shall be computed by dividing such producer's total deliveries of milk to handlers during such 4-month period by the numbers of days on which milk was received from such producer:

Copies of this notice may be procured from the Hearing Clerk, Room 112, Administration Building, United States Department of Agriculture, Washington 25, D. C., or may be there inspected.

Issued at Washington, D. C., this 19th day of November 1957.

[SEAL] ROY W. LENNARTSON,
Deputy Administrator.

[F. R. Doc. 57-9710; Filed, Nov. 22, 1957; 8:46 a. m.]

NOTICES

FEDERAL POWER COMMISSION

[Docket Nos. G-9749 etc.]

TOWN GAS CO. OF ILLINOIS ET AL.

ORDER ADOPTING INITIAL DECISION OF PRESIDING EXAMINER IN PART, ORDERING SEVERANCE IN DOCKET NOS. G-10740 AND G-11119, AND FIXING DATE FOR ORAL ARGUMENT IN OTHER DOCKETS

In the matters of Town Gas Company of Illinois, G-9749; Village of Edinburg, Illinois, G-10349; Village of Divernon, Illinois, G-10350; Village of Pawnee, Illinois, G-10351; Central Illinois Public Service Company, G-10740; Central Illinois Public Service Company, G-10785; Michigan Gas Utilities Company, G-10898; Village of Riverton, Illinois, G-11036; Village of Wayne City, Illinois, G-11037; and Ohio Gas Company, G-11119.

On October 10, 1957, the Presiding Examiner filed his decision in this proceeding, in which he determined that the application of Central Illinois Public Service Company (Central Illinois) in Docket No. G-10740 for an order directing Panhandle Eastern Pipe Line Company (Panhandle) to establish physical connection of its transportation facilities known as the Peoria Lateral with the proposed facilities of Central Illinois at a point approximately one-half mile northeast of New Holland, Logan County, Illinois, and to sell natural gas to Central Illinois for local distribution to the inhabitants of Mason City and the area adjacent thereto in Mason County, Illinois should be granted. The Presiding Examiner has also determined that the application of Ohio Gas Company (Ohio Gas) in Docket No. G-11119 should be granted. In this matter Ohio Gas seeks an order for an additional connection with Panhandle at a point approximately eight miles east of Swanton, Ohio.

In each of these matters the applicant does not seek additional gas. In the Central Illinois case, the applicant showed that its construction of a propane plant at Quincy, Illinois, although there are no interconnecting facilities between Quincy and Mason City, will make available an additional volume of gas by displacement. In the Ohio Gas case, the applicant will be able to serve Swanton under its present service agreement. In its brief (p. 26) filed herein on July 22, 1957, Panhandle stated that it does not oppose the application of Central Illinois for a new connection. Panhandle's counsel stated on the record (Tr. 72) at the hearing that Panhandle did not oppose the application of Ohio Gas (Tr. 72) if, in fact, the service could be rendered without an additional allocation of gas.

No exceptions have been filed to the decision of the Presiding Examiner with respect to these two dockets. However, Central Illinois and Ohio Gas have filed

on November 4 and November 1, 1957, respectively, motions for severance of their 7 (a) applications and for immediate decisions thereon.

Central Illinois alleges in its motion for severance that the ordinance of the City of Mason City granting it the right to construct and operate a gas utility provides that it commence operations of a gas utility in said city within two years from the date of acceptance by Central Illinois of said ordinance, which acceptance was made on May 4, 1956. Central Illinois states that construction of said gas utility should be started at once to enable it to provide natural gas service to residents of Mason City and adjacent area during the 1957-1958 winter heating season, and to comply with said condition in said ordinance.

Ohio Gas states in its motion for severance that under the terms of its franchise it must provide natural gas service to the Village of Swanton on or before December 13, 1957, otherwise the franchise granted to it will by its terms expire. As further ground for its motion Ohio Gas alleges that the winter season is rapidly approaching and it is in the best interest of the inhabitants of the Village of Swanton to be supplied with natural gas during the coming winter to prevent an undue hardship. It states further that it is fully prepared to proceed with the construction of its necessary lines to provide natural gas service to the Village of Swanton, Ohio, immediately upon the order of this Commission.

The Presiding Examiner's decision, having been served on all parties of record herein, all of the other 7 (a) applicants and staff counsel filed exceptions thereto[1] and most of the parties have asked for oral argument. No exceptions have been taken by any party to the Presiding Examiner's decision in granting the applications of Central Illinois in Docket No. G-10740 and Ohio Gas in Docket No. G-11119. The staff, however, has suggested a slight change in the wording of ordering paragraphs (B) and (C). The staff has proposed that after the words "Mason County, Illinois" in ordering paragraph (B) the following language be substituted for the remaining words of that paragraph:

* * * upon the filing by Panhandle of a new service agreement providing for the delivery of specific volumes of natural gas to Central Illinois Public Service Company at the seven delivery points set forth in the application herein instead of the six points described in the existing service agreement.

The staff has also proposed that after the words "Swanton, Ohio" in the tenth line of ordering paragraph (C) the following language be substituted for the remaining words of that paragraph:

* * * upon the filing by Panhandle of a new service agreement providing for the delivery of specific volumes of natural gas at the additional delivery point described in the application. The total volume of gas to be delivered to Ohio Gas by Panhandle on any day shall not exceed the maximum volume Panhandle is presently obligated to deliver.

The Commission is of the opinion that this correction should be made.

The Commission having considered the evidence, the briefs filed, the decision of the Presiding Examiner, and the motions for severance in the Matters of Central Illinois Public Service Company, Docket No. G-10740, and Ohio Gas Company, Docket No. G-11119, finds that the public interest requires that the proceedings in Docket Nos. G-10740 and G-11119 be severed from these consolidated proceedings and that the decision of the Presiding Examiner relating to said dockets should be affirmed with the modification in the wording of ordering paragraphs (B) and (C) as above set forth.

The Commission finds also that the other dockets in these proceedings involve the question of the combined capacity of the Panhandle-Trunkline system to render the proposed service concerning which exceptions have been filed, and that it is appropriate that the requests for oral argument be granted.

The Commission orders:

(A) The proceedings In the Matters of Central Illinois Public Service Company, Docket No. G-10740, and Ohio Gas Company, Docket No. G-11119, be and the same are hereby severed from these consolidated proceedings.

(B) The decision of the Presiding Examiner issued herein on October 10, 1957 be and is hereby adopted with respect to Central Illinois Public Service Company, Docket No. G-10740, except that the language in ordering paragraph (B) of said decision shall be changed to read as follows:

The prayer of the applicant Central Illinois Public Service Company as contained in its application under section 7 of the Natural Gas Act in Docket No. G-10740 be and the same is hereby granted, and Panhandle Eastern Pipe Line Company is hereby directed to establish physical connection of its transportation facilities known as the Peoria Lateral with the proposed facilities of Central Illinois Public Service Company set forth and described in its application, and to sell and deliver natural gas to Central Illinois for local distribution and sale to the inhabitants of Mason City and the area adjacent thereto in Mason County, Illinois, upon the filing by Panhandle of a new service agreement providing for the delivery of specific volumes of natural gas to Central Illinois Public Service Company at the seven delivery points set forth in the application herein instead of the six points described in the existing service agreement.

(C) The decision of the Presiding Examiner issued herein on October 10, 1957, be and is hereby adopting, with respect to Ohio Gas Company, Docket No. G-11119, except that the language in ordering paragraph (C) be changed to read as follows:

The prayer of Ohio Gas Company as contained in its application under Section 7 of the Natural Gas Act in Docket No. G-11119 be and the same is hereby granted, and Panhandle Eastern Pipe Line Company is hereby directed to establish physical connection of its transportation facilities with the facilities of Ohio Gas Company at a point approximately eight miles east of Swanton, Ohio, and to sell and deliver natural gas to Ohio Gas for local distribution and sale to the inhabitants of the Village of Swanton, Ohio, upon the filing by Panhandle of a new service agreement providing for the delivery of specific volumes of natural gas at the additional delivery point described in the application. The total volume of gas to be delivered to Ohio Gas by Panhandle on any day shall not exceed the maximum volume Panhandle is presently obligated to deliver.

(D) The Presiding Examiner's decision as it relates to said Docket Nos. G-10740 and G-11119 as so modified shall become effective as the decision of the Commission as of the date of issuance of this order.

(E) Oral argument be had before the Commission on December 12, 1957, at 10:00 a. m., e. s. t., in a hearing room of the Federal Power Commission, 441 G Street NW., Washington, D. C., concerning the matters involved and the issues presented in all of the above-entitled consolidated proceedings except those herein severed.

(F) Each party to the proceedings desiring to participate in the oral argument shall notify the Secretary of the Commission on or before December 2, 1957, of such intention and of the amount of time requested for presentation of their argument.

Issued: November 20, 1957.

By the Commission.

[SEAL] JOSEPH H. GUTRIDE, *Secretary.*

[F. R. Doc. 57-9737; Filed, Nov. 22, 1957; 8:57 a. m.]

[1] Town Gas Company of Illinois, Docket No. G-9749, exceptions filed October 30, 1957.
Village of Edinburg, Illinois, Docket No. G-10349, exceptions filed November 7, 1957.
Village of Divernon, Illinois, Docket No. G-10350, exceptions filed November 7, 1957.
Village of Pawnee, Illinois, Docket No. G-10351, exceptions filed November 7, 1957.
Michigan Gas Utilities Company, Docket No. G-10898, exceptions filed October 28, 1957.
Village of Riverton, Illinois, Docket No. G-11036, exceptions filed October 31, 1957.
Village of Wayne City, Illinois, Docket No. G-11037, exceptions filed October 31, 1957.
Staff counsel, exceptions filed October 30, 1957.

DEPARTMENT OF COMMERCE

Federal Maritime Board

MEMBER LINES OF CALCUTTA/U. S. A. CONFERENCE

NOTICE OF AGREEMENT FILED WITH THE BOARD FOR APPROVAL

Notice is hereby given that the following described agreement has been filed with the Board for approval pursuant to section 15 of the Shipping Act, 1916 (39 Stat. 733, 46 U. S. C. 814):

Agreement No. 6500-9, between the member lines of the Calcutta/U. S. A. Conference, modifies the basic agreement of that conference (No. 6500, as amended) to provide (1) for the deletion of suspended clauses of the agreement restricting the number of sailings to be made by the member lines and the

amount of cargo to be loaded per vessel at Calcutta; and (2) for the admission of other carriers to conference membership upon agreement of the member lines.

Interested parties may inspect this agreement and obtain copies thereof at the Regulation Office, Federal Maritime Board, Washington, D. C., and may submit, within 20 days after publication of this notice in the FEDERAL REGISTER, written statements with reference to the agreement and their position as to approval, disapproval, or modification, together with request for hearing should such hearing be desired.

Dated: November 20, 1957.

By order of the Federal Maritime Board.

GEO. A. VIEHMANN,
Assistant Secretary.

[F. R. Doc. 57-9733; Filed, Nov. 22, 1957; 8:55 a. m.]

DEPARTMENT OF THE TREASURY

Foreign Assets Control

IMPORTATION OF CERTAIN MERCHANDISE DIRECTLY FROM HONG KONG

AVAILABLE CERTIFICATIONS BY GOVERNMENT OF HONG KONG

Notice is hereby given that certificates of origin issued by the Department of Commerce and Industry of the Government of Hong Kong under procedures agreed upon between that government and the Foreign Assets Control are available, as of November 15, 1957, with respect to the importation into the United States directly, or on a through bill of lading, from Hong Kong of the following additional commodities:

Junks.
Sampans.

[SEAL] ELTING ARNOLD,
Acting Director,
Foreign Assets Control.

[F. R. Doc. 57-9722; Filed, Nov. 22, 1957; 8:53 a. m.]

Office of the Secretary

[1957 Dept. Circular 1000]

3⅞ PERCENT TREASURY BONDS OF 1974

OFFERING OF BONDS

NOVEMBER 20, 1957.

I. *Offering of bonds.* 1. The Secretary of the Treasury, pursuant to the authority of the Second Liberty Bond Act, as amended, invites subscriptions, at par and accrued interest, from the people of the United States for bonds of the United States, designated 3⅞ percent Treasury Bonds of 1974. The amount of the offering under this circular is $500,000,000, or thereabouts. In addition to the amount offered for public subscription, the Secretary of the Treasury reserves the right to allot up to $100,000,000 of these bonds to Government Investment Accounts. The books will be open only on November 20 for the receipt of subscriptions for this issue.

II. *Description of bonds.* 1. The bonds will be dated December 2, 1957, and will bear interest from that date at the rate of 3⅞ percent per annum, payable on a semiannual basis on May 15 and November 15, 1958, and thereafter on May 15 and November 15 in each year until the principal amount becomes payable. They will mature November 15, 1974, and will not be subject to call for redemption prior to maturity.

2. The income derived from the bonds is subject to all taxes imposed under the Internal Revenue Code of 1954. The bonds are subject to estate, inheritance, gift or other excise taxes, whether Federal or State, but are exempt from all taxation now or hereafter imposed on the principal or interest thereof by any State, or any of the possessions of the United States, or by any local taxing authority.

3. The bonds will be acceptable to secure deposits of public moneys.

4. Bearer bonds with interest coupons attached, and bonds registered as to principal and interest, will be issued in denominations of $500, $1,000, $5,000, $10,000, $100,000 and $1,000,000. Provision will be made for the interchange of bonds of different denominations and of coupon and registered bonds, and for the transfer of registered bonds, under rules and regulations prescribed by the Secretary of the Treasury.

5. Any bonds issued hereunder which upon the death of the owner constitute part of his estate, will be redeemed at the option of the duly constituted representatives of the deceased owner's estate, at par and accrued interest to date of payment,[1] *Provided:*

(a) That the bonds were actually owned by the decedent at the time of his death; and

(b) that the Secretary of the Treasury be authorized to apply the entire proceeds of redemption to the payment of Federal estate taxes.

Registered bonds submitted for redemption hereunder must be duly assigned to "The Secretary of the Treasury for redemption, the proceeds to be paid to the District Director of Internal Revenue at _____ for credit on Federal estate taxes due from estate of _____." Owing to the periodic closing of the transfer books and the impossibility of stopping payment of interest to the registered owner during the closed period, registered bonds received after the closing of the books for payment during such closed period will be paid only at par with a deduction of interest from the date of payment to the next interest payment date;[2] bonds received during the closed period for payment at a date after the books reopen will be paid at par plus accrued interest from the reopening of the books to the date of payment. In either case checks for the full six months' interest due on the last day of the closed period will be forwarded to the owner in due course. All bonds submitted must be accompanied by Form PD 1782,[3] properly completed, signed and certified, and by proof of the representatives' authority in the form of a court certificate or a certified copy of the representatives' letters of appointment issued by the court. The certificate, or the certification to the letters, must be under the seal of the court, and except in the case of a corporate representative, must contain a statement that the appointment is in full force and be dated within six months prior to the submission of the bonds, unless the certificate or letters show that the appointment was made within one year immediately prior to such submission. Upon payment of the bonds appropriate memorandum receipt will be forwarded to the representatives, which will be followed in due course by formal receipt from the District Director of Internal Revenue.

6. The bonds will be subject to the general regulations of the Treasury Department, now or hereafter prescribed, governing United States bonds.

III. *Subscription and allotment.* 1. Subscriptions will be received at the Federal Reserve Banks and Branches and at the Office of the Treasurer of the United States, Washington. Commercial banks, which for this purpose are defined as banks accepting demand deposits, may submit subscriptions for account of customers, but only the Federal Reserve Banks and the Treasury Department are authorized to act as official agencies. Others than commercial banks will not be permitted to enter subscriptions except for their own account. Subscriptions from commercial banks for their own account will be received without deposit, but will be restricted in each case to an amount not exceeding 25 percent of the combined capital, surplus and undivided profits, of the subscribing bank, as of June 30, 1957. Subscriptions from all others must be accompanied by payment of 10 percent of the amount of bonds applied for, not subject to withdrawal until after allotment. Following allotment, any portion of the 10 percent payment in excess of 10 percent of the amount of bonds allotted may be released upon the request of the subscribers.

2. Commercial banks in submitting subscriptions will be required to certify that they have no beneficial interest in any of the subscriptions they enter for the account of their customers, and that their customers have no beneficial interest in the banks' subscriptions for their own account.

3. The Secretary of the Treasury reserves the right to reject or reduce any subscription, and to allot less than the amount of bonds applied for, and to make different percentage allotments to various classes of subscribers; and any action he may take in these respects shall be final. The basis of the allotment will be publicly announced and allotment notices will be sent out promptly upon allotment.

[1] An exact half-year's interest is computed for each full half-year period irrespective of the actual number of days in the half year. For a fractional part of any half year, computation is on the basis of the actual number of days in such half year.

[2] The transfer books are closed from April 16 to May 15 and from October 16 to November 15 (both dates inclusive) in each year.

[3] Copies of Form PD 1782 may be obtained from any Federal Reserve Bank or from the Treasury Department, Washington, D. C.

IV. *Payment.* 1. Payment at par and accrued interest, if any, for bonds allotted hereunder must be made or completed on or before December 2, 1957, or on later allotment. In every case where payment is not so completed, the payment with application up to 10 percent of the amount of bonds allotted shall, upon declaration made by the Secretary of the Treasury in his discretion, be forfeited to the United States. Any qualified depositary will be permitted to make payment by credit for bonds allotted to it for itself and its customers up to any amount for which it shall be qualified in excess of existing deposits, when so notified by the Federal Reserve Bank of its District.

V. *General provisions.* 1. As fiscal agents of the United States, Federal Reserve Banks are authorized and requested to receive subscriptions, to make allotments on the basis and up to the amounts indicated by the Secretary of the Treasury to the Federal Reserve Banks of the respective Districts, to issue allotment notices, to receive payment for bonds allotted, to make delivery of bonds on full-paid subscriptions allotted, and they may issue interim receipts pending delivery of the definitive bonds.

2. The Secretary of the Treasury may at any time, or from time to time, prescribe supplemental or amendatory rules and regulations governing the offering, which will be communicated promptly to the Federal Reserve Banks.

[SEAL] ROBERT B. ANDERSON,
Secretary of the Treasury.

[F. R. Doc. 57-9723; Filed, Nov. 22, 1957; 8:53 a. m.]

[1957 Dept. Circular 999]

3¾ PERCENT TREASURY NOTES OF SERIES C–1962

OFFERING OF NOTES

NOVEMBER 20, 1957.

I. *Offering of notes.* 1. The Secretary of the Treasury, pursuant to the authority of the Second Liberty Bond Act, as amended, invites subscriptions, at par and accrued interest, from the people of the United States for notes of the United States, designated 3¾ percent Treasury Notes of Series C–1962. The amount of the offering under this circular is $1,000,000,000, or thereabouts. In addition to the amount offered for public subscription, the Secretary of the Treasury reserves the right to allot up to $100,000,000 of these notes to Government Investment Accounts. The books will be open only on November 20 for the receipt of subscriptions for this issue.

II. *Description of notes.* 1. The notes will be dated November 29, 1957, and will bear interest from that date at the rate of 3¾ percent per annum, payable on a semiannual basis on May 15 and November 15, 1958, and thereafter on May 15 and November 15 in each year until the principal amount becomes payable. They will mature November 15, 1962, and will not be subject to call for redemption prior to maturity.

2. The income derived from the notes is subject to all taxes imposed under the Internal Revenue Code of 1954. The notes are subject to estate, inheritance, gift or other excise taxes, whether Federal or State, but are exempt from all taxation now or hereafter imposed on the principal or interest thereof by any State, or any of the possessions of the United States, or by any local taxing authority.

3. The notes will be acceptable to secure deposits of public moneys. They will not be acceptable in payment of taxes.

4. Bearer notes with interest coupons attached will be issued in denominations of $1,000, $5,000, $10,000, $100,000, $1,000,000, $100,000,000 and $500,000,000. The notes will not be issued in registered form.

5. The notes will be subject to the general regulations of the Treasury Department, now or hereafter prescribed, governing United States notes.

III. *Subscription and allotment.* 1. Subscriptions will be received at the Federal Reserve Banks and Branches and at the Office of the Treasurer of the United States, Washington. Commercial banks, which for this purpose are defined as banks accepting demand deposits, may submit subscriptions for account of customers, but only the Federal Reserve Banks and the Treasury Department are authorized to act as official agencies. Others than commercial banks will not be permitted to enter subscriptions except for their own account. Subscriptions from commercial banks for their own account will be received without deposit, but will be restricted in each case to an amount not exceeding 50 percent of the combined capital, surplus and undivided profits, of the subscribing bank, as of June 30, 1957. Subscriptions from all others must be accompanied by payment of 2 percent of the amount of notes applied for, not subject to withdrawal until after allotment. Following allotment, any portion of the 2 percent payment in excess of 2 percent of the amount of notes allotted may be released upon the request of the subscribers.

2. Commercial banks in submitting subscriptions will be required to certify that they have no beneficial interest in any of the subscriptions they enter for the account of their customers, and that their customers have no beneficial interest in the banks' subscriptions for their own account.

3. The Secretary of the Treasury reserves the right to reject or reduce any subscription, and to allot less than the amount of notes applied for, and to make different percentage allotments to various classes of subscribers; and any action he may take in these respects shall be final. The basis of the allotment will be publicly announced, and allotment notices will be sent out promptly upon allotment.

IV. *Payment.* 1. Payment at par and accrued interest, if any, for notes allotted hereunder must be made or completed on or before November 29, 1957, or on later allotment. In every case where payment is not so completed, the payment with application up to 2 percent of the amount of notes allotted shall, upon declaration made by the Secretary of the Treasury in his discretion, be forfeited to the United States. Any qualified depositary will be permitted to make payment by credit for notes allotted to it for itself and its customers up to any amount for which it shall be qualified in excess of existing deposits when so notified by the Federal Reserve Bank of its District.

V. *General provisions.* 1. As fiscal agents of the United States, Federal Reserve Banks are authorized and requested to receive subscriptions, to make allotments on the basis and up to the amounts indicated by the Secretary of the Treasury to the Federal Reserve Banks of the respective Districts, to issue allotment notices, to receive payment for notes allotted, to make delivery of notes on full-paid subscriptions allotted, and they may issue interim receipts pending delivery of the definitive notes.

2. The Secretary of the Treasury may at any time, or from time to time, prescribe supplemental or amendatory rules and regulations governing the offering, which will be communicated promptly to the Federal Reserve Banks.

[SEAL] ROBERT B. ANDERSON,
Secretary of the Treasury.

[F. R. Doc. 57-9724; Filed, Nov. 22, 1957; 8:53 a. m.]

[1957 Dept. Circular 998]

3¾ PERCENT TREASURY CERTIFICATES OF INDEBTEDNESS OF SERIES D–1958

NOVEMBER 20, 1957.

I. *Offering of certificates.* 1. The Secretary of the Treasury, pursuant to the authority of the Second Liberty Bond Act, as amended, invites subscriptions, at par, from the people of the United States for certificates of indebtedness of the United States, designated 3¾ percent Treasury Certificates of Indebtedness of Series D–1958, in exchange for 3⅝ percent Treasury Certificates of Indebtedness of Series E–1957, maturing December 1, 1957. The amount of the offering under this circular will be limited to the amount of maturing certificates tendered in exchange and accepted. The books will be open only on November 21 and November 22 for the receipt of subscriptions for this issue.

II. *Description of certificates.* 1. The certificates will be dated December 1, 1957, and will bear interest from that date at the rate of 3¾ percent per annum, payable semiannually on June 1 and December 1, 1958. They will mature December 1, 1958. They will not be subject to call for redemption prior to maturity.

2. The income derived from the certificates is subject to all taxes imposed under the Internal Revenue Code of

1954. The certificates are subject to estate, inheritance, gift or other excise taxes, whether Federal or State, but are exempt from all taxation now or hereafter imposed on the principal or interest thereof by any State, or any of the possessions of the United States, or by any local taxing authority.

3. The certificates will be acceptable to secure deposits of public moneys. They will not be acceptable in payment of taxes.

4. Bearer certificates with interest coupons attached will be issued in denominations of $1,000, $5,000, $10,000, $100,000, $1,000,000, $100,000,000 and $500,000,000. The certificates will not be issued in registered form.

5. The certificates will be subject to the general regulations of the Treasury Department, now or hereafter prescribed, governing United States certificates.

III. *Subscription and allotment.* 1. Subscriptions will be received at the Federal Reserve Banks and Branches and at the Office of the Treasurer of the United States, Washington. Banking institutions generally may submit subscriptions for account of customers, but only the Federal Reserve Banks and the Treasury Department are authorized to act as official agencies.

2. The Secretary of the Treasury reserves the right to reject or reduce any subscription, and to allot less than the amount of certificates applied for; and any action he may take in these respects shall be final. Subject to these reservations, all subscriptions will be allotted in full. Allotment notices will be sent out promptly upon allotment.

IV. *Payment.* 1. Payment at par for certificates allotted hereunder must be made on or before December 2, 1957, or on later allotment, and may be made only in Treasury Certificates of Indebtedness of Series E–1957, maturing December 1, 1957, which will be accepted at par, and should accompany the subscription. Coupons dated December 1, 1957, should be detached from the certificates when surrendered, and cashed when due.

V. *General provisions.* 1. As fiscal agents of the United States, Federal Reserve Banks are authorized and requested to receive subscriptions, to make allotments on the basis and up to the amounts indicated by the Secretary of the Treasury to the Federal Reserve Banks of the respective Districts, to issue allotment notices, to receive payment for certificates allotted, to make delivery of certificates on full-paid subscriptions allotted, and they may issue interim receipts pending delivery of the definitive certificates.

2. The Secretary of the Treasury may at any time, or from time to time, prescribe supplemental or amendatory rules and regulations governing the offering, which will be communicated promptly to the Federal Reserve Banks.

[SEAL] ROBERT B. ANDERSON,
Secretary of the Treasury.

[F. R. Doc. 57-9725; Filed, Nov. 22, 1957; 8:54 a. m.]

FEDERAL COMMUNICATIONS COMMISSION

[Docket Nos. 11588 etc.; FCC 57M-1143]

JOSEPH M. RIPLEY, INC., ET AL.

ORDER SCHEDULING HEARING

In the matter of Joseph M. Ripley, Inc., Jacksonville, Florida, Docket No. 11588, File No. BP-9788; Robert Hecksher, Jacksonville, Florida, Docket No. 11777, File No. BP-10255; Dan Richardson, Orange Park, Florida, Docket No. 11999, File No. BP-10697; for construction permits.

Pursuant to a pre-hearing conference held this date in the above-entitled proceeding, and with the concurrence of counsel; *It is ordered,* This 18th day of November 1957, that hearing herein be, and the same is hereby, set for January 20, 1958, commencing at 10 o'clock a. m., in the offices of the Commission in Washington, D. C.

Released: November 19, 1957.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] MARY JANE MORRIS,
Secretary.

[F. R. Doc. 9727; Filed; Nov. 22, 1957; 8:54 a. m.]

[Docket Nos. 12244—12246; FCC 57M-1149]

SANTA ROSA BROADCASTING CO. ET AL.

ORDER SCHEDULING PREHEARING CONFERENCE

In re applications of B. Floyd Farr, George Snell, Edward W. McCleery, Robert Blum d/b as Santa Rosa Broadcasting Company, Santa Rosa, California, Docket No. 12244, File No. BP-10626; Golden Valley Broadcasting Company (KRAK), Stockton, California, Docket No. 12245, File No. BP-10676; Joseph E. Gamble and Lew L. Gamble d/b as Radio Santa Rosa, Santa Rosa, California, Docket No. 12246, File No. BP-11084; for construction permits.

It is ordered, This 19th day of November 1957, that a prehearing conference, in accordance with § 1.813 of the Rules, will be held in the above-entitled matter at 10:00 a. m., December 6, 1957, in the Commission's offices at Washington, D. C.

Released: November 19, 1957.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] MARY JANE MORRIS,
Secretary.

[F. R. Doc. 57-9728; Filed, Nov. 22, 1957; 8:54 a. m.]

[Docket No. 12174; FCC 57M-1144]

ATLANTIC COAST BROADCASTING CORP. OF CHARLESTON (WTMA-TV)

ORDER CONTINUING HEARING

In re application of Atlantic Coast Broadcasting Corporation of Charleston (WTMA-TV), Charleston, South Carolina, Docket No. 12174, File No. BPCT-2346; for construction permit for a new television broadcast station.

At the oral request of the applicant in the above-entitled proceeding and with the concurrence of all other participants; *It is ordered,* This 18th day of November, 1957, that hearing in the above-entitled proceedings now scheduled for November 19, 1957, is continued to December 3, 1957.

Released: November 19, 1957.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] MARY JANE MORRIS,
Secretary.

[F. R. Doc. 57-9729; Filed, Nov. 22, 1957; 8:55 a. m.]

[Docket Nos. 12209, 12210; FCC 57M-1142]

DAVID M. SEGAL ET AL.

ORDER CONTINUING HEARING CONFERENCE

In re applications of David M. Segal, Boulder, Colorado, Docket No. 12209, File No. BP-10427; Kenneth G. Prather and Misha S. Prather, Boulder, Colorado, Docket No. 12210, File No. BP-11289; for construction permits.

It is ordered, This 18th day of November 1957, that the prehearing conference in the above-entitled matter heretofore scheduled to commence on November 21, 1957, is hereby rescheduled to commence at 10 a. m., November 25, 1957, in the Commission's offices at Washington, D. C.

Released: November 19, 1957.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] MARY JANE MORRIS,
Secretary.

[F. R. Doc. 57-9730; Filed, Nov. 22, 1957; 8:55 a. m.]

[Docket No. 12234]

CAPITOL CAB CO., INC.

ORDER TO SHOW CAUSE

In the matter of Capitol Cab Company, Inc., Somerville, Massachusetts, Docket No. 12234; Order to Show Cause Why the License for Taxicab Radio Station KCE 672 Should Not Be Revoked.

The Commission having under consideration the matter of certain alleged violations of the Communications Act of 1934, as amended, and the Commission's rules in connection with the operation of Taxicab Radio Station KCE 672, licensed to the Capitol Cab Company, Inc., 104 Dover Street, Somerville, Massachusetts;

It appearing that a letter from the licensee to the Commission, dated October 24, 1956, in response to a Violation Notice which had been issued to the licensee, plus other information available to the Commission, raised the question whether the licensee was using subject taxicab radio station in its own taxicab operations as required by the applicable provisions of the Commission's rules

under which the license had been granted; and

It further appearing that the Commission by letter, dated March 27, 1957, certified mail No. 97401, acknowledged licensee's letter of October 24, 1956, and among other things, initiated inquiry as to whether Capitol Cab Company, Inc. was utilizing subject taxicab radio station in its own taxicab operations, or was using this station entirely for the purpose of rendering communication service to the Yellow Cab Company, Inc.; and

It further appearing that the licensee responded by letter dated April 10, 1957, to the Commission's letter, dated March 27, 1957, and stated, among other things, that there were no radios in operation in any Capitol Cab Company taxicabs, but promised installation of radio equipment therein within fifteen (15) days from the date of its letter; and

It further appearing that the Commission by letter, dated April 16, 1957, acknowledged licensee's response, dated April 10, 1957, and further requested that licensee notify the Commission that said taxicab radio station was being utilized for the primary purpose for which it was authorized as soon as the necessary installation was made; and

It further appearing that licensee made no response to the Commission about installation of said radios as requested by the Commission's letter, dated April 16, 1957; and

It further appearing that the Commission in a letter, dated July 16, 1957, by referring to its letter, dated April 16, 1957, again requested information concerning the utilization of such radio station; and

It further appearing that licensee made no response to the Commission's letter, dated July 16, 1957; and

It further appearing that the Commission sent licensee a final warning letter, dated September 23, 1957, by certified mail, No. 97290, concerning this matter, wherein licensee was informed that the Commission received no answer to its letters, dated April 16, 1957 and July 16, 1957, and wherein, pursuant to section 308 (b) of the Communications Act of 1934, as amended, licensee was requested to furnish the Commission with a statement under oath or affirmation, which must reach the Commission within ten (10) days of the receipt of the warning letter, stating whether licensee is now using Taxicab Radio Station KCE 672 in connection with the operation of Capitol Cab Company, Inc., referring licensee to §§ 16.401 and 16.151 of the Commission's rules and warning licensee that failure to submit a satisfactory answer would result in the institution of revocation proceedings; and

It further appearing that a United States Post Office return receipt card indicates that licensee received said warning letter on September 26, 1957; and

It further appearing that more than ten (10) days have elapsed since the licensee received the Commission's letter, dated September 23, 1957, and that no answer has been received by the Commission; and

It further appearing that, based on the foregoing recital, licensee has repeatedly or wilfully violated section 308 (b) of the Communications Act of 1934, as amended, and §§ 1.401 and 16.159 of the Commission's rules by failing to respond to official inquiries; and

It further appearing that the Commission would not have granted said license if at the time of issuance it had known that applicant would not utilize said station in conjunction with its own taxicab operations;

It is ordered, This 19th day of November, 1957, pursuant to the provisions of section 312 (a) (2), (4) and (c) of the Communications Act of 1934, as amended, that said licensee, Capitol Cab Company, Inc., show cause why the license for Taxicab Radio Station KCE 672 should not be revoked and appear and give evidence in respect thereto at a hearing[1] to be held at the offices of the Commission in Washington, D. C., commencing at 10:00 a. m. on the 20th day of January 1958; and

It is further ordered, That the Secretary send a copy of this Order by Certified Mail—Return Receipt Requested to said Capitol Cab Company, Inc., 104 Dover Street, Somerville, Massachusetts.

Released: November 19, 1957.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] MARY JANE MORRIS,
Secretary.

[F. R. Doc. 57-9731; Filed, Nov. 22, 1957; 8:55 a. m.]

[1] Section 1.402 of the Commission's rules provides that in order to have the opportunity to appear before the Commission at the time and place specified in an order to show cause, a licensee shall within thirty (30) days from the date of the receipt of a show cause order submit a written statement informing the Commission whether said licensee will appear at the designated hearing and present evidence upon the matters specified, or whether the rights to such a hearing are waived. Waiver of the hearing may be accompanied by a statement setting forth the reasons why the licensee believes that an order of revocation should not be issued. A waiver unaccompanied by such a statement will be deemed to be an admission of the allegations specified in the order to show cause. Failure to respond to a show cause order within the above-mentioned thirty (30) day period, or, having informed the Commission in writing within the above-mentioned thirty (30) day period that the licensee will appear at the hearing and present evidence upon the matter specified and then failing to appear at the hearing, will be deemed to be a waiver of the right to a hearing and an admission of the allegations specified in the order to show cause.

GENERAL SERVICES ADMINISTRATION

[Delegation of Authority 313]

SECRETARY OF THE INTERIOR

DISPOSAL OF 3.12 MILES, 115-KV, ELECTRIC POWER TRANSMISSION LINE, NEAR COOS BAY, OREGON

1. Pursuant to authority vested in me by the provisions of the Federal Property and Administrative Services Act of 1949, (63 Stat. 377) as amended, authority is hereby delegated to the Secretary of the Interior to determine that the excess real property and any related personal property comprising a 3.12-mile section of the Bonneville Power Administration's 42-mile, 115-kv electric power transmission line designated as "Line 20", near Coos Bay, Southern Oregon, is not required for the needs and responsibilities of Federal agencies and thereafter to dispose of said power line section by negotiated sale to the Pacific Power and Light Company upon such terms as may be advantageous to the United States: *Provided*, That not less than the appraised fair market value of the property shall be obtained.

2. The authority conferred herein shall be exercised in accordance with the act and the regulations issued pursuant thereto.

3. The Secretary of the Interior shall submit to the appropriate Committees of Congress an explanatory statement of the type required by section 203 (e) of the act, as amended. A copy of such statement shall be furnished to the General Services Administration.

4. The authority delegated herein may be redelegated to any officer or employee of the Department of the Interior.

5. This delegation of authority shall be effective as of the date hereof.

Dated: November 18, 1957.

FRANKLIN G. FLOETE,
Administrator.

[F. R. Doc. 57-9716; Filed, Nov. 22, 1957; 8:51 a. m.]

[Delegation of Authority 314]

SECRETARY OF THE INTERIOR

DISPOSAL OF 3.75 MILES, ELECTRIC POWER TRANSMISSION LINE, NEAR TRUTH OR CONSEQUENCES, NEW MEXICO

1. Pursuant to authority vested in me by the provisions of the Federal Property and Administrative Services Act of 1949 (63 Stat. 377) as amended, hereinafter referred to as the act, authority is hereby delegated to the Secretary of the Interior to determine that the excess real property comprising the Bureau of Reclamation 3.75 miles electric power transmission line, near the City of Truth or Consequences, New Mexico, is not required for the needs and responsibilities of Federal agencies and thereafter to dispose of said transmission line by sale to the Sierra Electric Cooperative, Inc., at the fair market value thereof, pursuant to the provisions of section 13 (d) of the Surplus Property Act of 1944, as amended, which section is continued in effect by section 602 (a) of the act.

2. The authority conferred herein shall be exercised in accordance with the act and the regulations issued pursuant thereto.

3. The authority delegated herein may be redelegated to any officer or employee of the Department of the Interior.

4. This delegation of authority shall be effective as of the date hereof.

Dated: November 19, 1957.

FRANKLIN G. FLOETE,
Administrator.

[F. R. Doc. 57-9715; Filed, Nov. 22, 1957; 8:51 a. m.]

SMALL BUSINESS ADMINISTRATION

[Declaration of Disaster Area 168]

TEXAS

DECLARATION OF DISASTER AREA

Whereas, it has been reported that during the month of November, 1957, because of the effects of certain disasters, damage resulted to residences and business property located in certain areas in the State of Texas;

Whereas, the Small Business Administration has investigated and has received other reports of investigations of conditions in the areas affected;

Whereas, after reading and evaluating reports of such conditions, I find that the conditions in such areas constitute a catastrophe within the purview of the Small Business Act of 1953, as amended;

Now, therefore, as Deputy Administrator of the Small Business Administration, I hereby determine that:

1. Applications for disaster loans under the provisions of section 207 (b) (1) of the Small Business Act of 1953, as amended, may be received and considered by the Offices below indicated from persons or firms whose property situated in the following Counties (including any areas adjacent to said Counties) suffered damage or other destruction as a result of the catastrophe hereinafter referred to:

Counties: Jefferson and Orange (Tornado occurring on or about November 7).

Offices: Small Business Administration Regional Office, 1000 Main Street, Dallas 2, Tex. Small Business Administration Branch Office, Veterans Administration Building, 1424 Hadley, Houston, Tex.

2. No special field offices will be established at this time.

3. Applications for disaster loans under the authority of this Declaration will not be accepted subsequent to May 31, 1958.

Dated: November 8, 1957.

ALBERT C. KELLY,
Deputy Administrator.

[F. R. Doc. 57-9719; Filed, Nov. 22, 1957; 8:52 a. m.]

[Declaration of Disaster Area 169]

LOUISIANA

DECLARATION OF DISASTER AREA

Whereas, it has been reported that during the month of November, 1957, because of the effects of certain disasters, damage resulted to residences and business property located in certain areas in the State of Louisiana;

Whereas, the Small Business Administration has investigated and has received other reports of investigations of conditions in the areas affected;

Whereas, after reading and evaluating reports of such conditions, I find that the conditions in such areas constitute a catastrophe within the purview of the Small Business Act of 1953, as amended;

Now, therefore, as Deputy Administrator of the Small Business Administration, I hereby determine that:

1. Applications for disaster loans under the provisions of section 207 (b) (1) of the Small Business Act of 1953, as amended, may be received and considered by the Offices below indicated from persons or firms whose property situated in the following Parish (including any areas adjacent to said Parish) suffered damage or other destruction as a result of the catastrophe hereinafter referred to:

County: Rapides Parish (Tornado occurring on or about November 7).

Offices: Small Business Administration Regional Office, 1000 Main Street, Dallas 2, Tex. Small Business Administration Branch Office, Masonic Temple Building, Room 708, 333 St. Charles Street, New Orleans 12, La.

2. No special field offices will be established at this time.

3. Applications for disaster loans under the authority of this Declaration will not be accepted subsequent to May 31, 1958.

Dated: November 8, 1957.

ALBERT C. KELLY,
Deputy Administrator.

[F. R. Doc. 57-9720; Filed, Nov. 22, 1957; 8:52 a. m.]

[Delegation of Authority No. 30-X-11]

MANAGER, DISASTER FIELD OFFICE, LAKE CHARLES, LOUISIANA

DELEGATION RELATING TO FINANCIAL ASSISTANCE FUNCTIONS

Notice is hereby given that this delegation is rescinded in its entirety. (Disaster Field Office closed COB 10-12-57.)

Dated: October 14, 1957.

C. W. FERGUSON,
Regional Director,
Dallas Regional Office.

[F. R. Doc. 57-9721; Filed, Nov. 22, 1957; 8:53 a. m.]

INTERSTATE COMMERCE COMMISSION

FOURTH SECTION APPLICATIONS FOR RELIEF

NOVEMBER 20, 1957.

Protests to the granting of an application must be prepared in accordance with Rule 40 of the general rules of practice (49 CFR 1.40) and filed within 15 days from the date of publication of this notice in the FEDERAL REGISTER.

LONG-AND-SHORT HAUL

FSA No. 34307: *Starch or dextrine—Points in Illinois to Gramercy, La.* Filed by R. G. Raasch, Agent (No. 636), for interested rail carriers. Rates on starch or dextrine, carloads, from specified points in Illinois, Indiana, Iowa, and Missouri in Illinois territory to Gramercy, La.

Grounds for relief: Market competition with imported tapioca and sago.

Tariffs: Supplement 144 to Agent Raasch's tariff I. C. C. 776. Supplement 74 to Agent C. A. Spaninger's tariff I. C. C. 1548.

FSA No. 34308: *Canned or preserved foodstuffs in official territory.* Filed by O. E. Schultz, Agent (ER No. 2411), for interested rail carriers. Rates on canned or preserved foodstuffs, carloads between points in official territory except within New England, in Illinois territory, points in Iowa, northern Illinois, southern Wisconsin, and points in extended zone "C" in Wisconsin.

Grounds for relief: Short-line distance formula and truck competition.

Tariffs: Agent H. R. Hinsch's tariff I. C. C. 4804. Supplement 13 to Agent R. G. Raasch's tariff I. C. C. 877.

FSA No. 34309: *Rock salt—Ojibway, Ontario, to Chicago, Ill.* Filed by O. E. Schultz, Agent (ER No. 2412), for and on behalf of The Essex Terminal Railway Company and The New York Central Railroad Company. Rates on salt, rock (sodium chloride), carloads, in bulk, from Ojibway, Ontario, Canada to Chicago, Ill.

Grounds for relief: Water competition.

Tariff: Supplement 13 to Agent R. K. Watson's tariff I. C. C. 197.

By the Commission.

[SEAL] HAROLD D. MCCOY,
Secretary.

[F. R. Doc. 57-9717; Filed, Nov. 22, 1957; 8:51 a. m.]

SECURITIES AND EXCHANGE COMMISSION

[File Nos. 59-103, 70-3623]

AMERICAN NATURAL GAS CO.

NOTICE OF AND ORDER INSTITUTING PROCEEDING AND FOR HEARING; AND ORDER OF CONSOLIDATION OF PROCEEDINGS

NOVEMBER 18, 1957.

The Commission having been advised by its Division of Corporate Regulation ("Division") that the Division, pursuant to sections 11 (a), 18 (a) and 18 (b) of the Public Utility Holding Company Act of 1935 ("act"), has examined the corporate structure of the holding company system of American Natural Gas Company ("American Natural"), a registered holding company, to determine whether and to what extent the corporate structure thereof should be simplified, unnecessary complexities therein eliminated, and voting power fairly and equitably distributed among the security holders; and it appearing to the Division from such examination that:

I. 1. American Natural is solely a holding company and is registered as such under section 5 of the act. The company was incorporated in 1901 under the laws of New Jersey as American Light & Traction Company and in June 1949 adopted its present name.

2. As of June 30, 1957, American Natural owned directly all the outstanding capital stocks of its six subsidiary companies. The names of the subsidiary companies, their states of incorporation, and the nature of the businesses carried on by each of these companies are set forth in Table I below:

TABLE I

Name of Company, State of Incorporation, Type of Business
American Louisiana Pipe Line Company, Delaware, Natural gas transmission.
American Natural Gas Service Company, Michigan, Service company.
Michigan Consolidated Gas Company, Michigan Gas utility company.
Michigan Wisconsin Pipe Line Company, Delaware, Natural gas transmission.
Milwaukee Gas Light Company, Wisconsin, Gas utility company.
Milwaukee Solvay Coke Company, Wisconsin, Coke and by-product coke-oven gas.

3. The capitalization and surplus of American Natural, on a corporate basis, as at June 30, 1957, was as follows:

TABLE II

	Amount	Percent
Long-term debt: 3¼ percent promissory notes due serially to 1962	$10,500,000	5.4
Preferred stock: 6 percent non-redeemable cumulative preferred stock, 27,481 shares, $25 par value	687,025	0.3
Common stock and surplus:		
Common stock, 4,863,246 shares, $25 par value	121,581,150	62.0
Capital surplus	32,978,914	16.8
Earned surplus	30,380,428	15.5
Total	184,940,492	94.3
Total capitalization and surplus	196,127,517	100.0

4. The capitalization and surplus of American Natural and its subsidiaries, on a consolidated basis, as of June 30, 1957, was as follows:

TABLE III

	Amount	Percent
Long-term debt	$392,085,000	65.5
Preferred stock: 6 percent non-redeemable cumulative preferred stock, 27,481 shares, $25 par value (American Natural)	687,025	0.1
Common stock and surplus:		
Common stock, 4,863,246 shares, $25 par value (American Natural)	121,581,150	20.3
Capital surplus	32,978,914	5.5
Earned surplus	51,232,581	8.6
Total	205,792,645	34.4
Total capitalization and surplus	598,564,670	100.0

5. The preferred stock of American Natural was issued in 1901 and at intervals thereafter. Originally, the shares had a par value of $100 per share but in 1930 four shares of $25 par value were exchanged for each outstanding share. The preferred stock is entitled to cumulative annual dividends at the rate of 6 percent per annum; is entitled in liquidation, whether voluntary or involuntary, to a preference of $25 per share and accrued unpaid dividends; and is non-redeemable. The holders of the preferred and common stocks of American Natural have one vote per share on general corporate matters. Under the General Laws of the State of New Jersey an affirmative vote of the holders of two-thirds of the outstanding preferred and common stock, voting by classes, is required to approve amendments to American Natural's Certificate of Incorporation.

6. On December 31, 1947, 536,324 shares of the preferred stock of American Natural were outstanding. As a result of the offer, made pursuant to a section 11 (e) plan and which was in effect between November 5 and December 6, 1948, a total of 505,770 shares of preferred stock, with an aggregate par value of $12,644,250 was purchased and retired. Thereafter American Natural purchased and retired additional shares of its preferred stock under Commission Rule U-42 (b) (6) promulgated under the act which permits such purchases to the extent of not more than $50,000 in any calendar year; such purchases resulting in the reduction of the number of outstanding shares to the 27,481 shown in Tables II and III.

II. The Division avers that the foregoing allegations, and the facts otherwise disclosed in the course of its examination of the corporate structure of American Natural's holding company system, established, or tend to establish, that the existence of the 6 percent cumulative, $25 par value, non-redeemable preferred stock of American Natural in the corporate structure of the American Natural holding company system unduly and unnecessarily complicates such structure and unfairly and inequitably distributes voting power among the security holders of such system.

III. It appearing to the Commission, on the basis of the allegations hereinbefore set forth in Parts I and II hereof that it is appropriate to institute a proceeding under section 11 (b) (2) of the act with respect to the American Natural holding company system to determine whether an appropriate order should be entered pursuant to that Section; and

It further appearing to the Commission that common questions of law and fact are involved in said proceeding instituted by the Commission under section 11 (b) (2) of the act and in a proceeding pending upon the application-declaration (File No. 70–3623) filed by American Natural seeking Commission authorization to purchase from time to time additional shares of its 6 percent preferred stock; that the said proceedings involve common questions of law and fact and that evidence adduced in one proceeding may have a bearing upon the issues in the other proceeding; and that a substantial saving in time and expense will result if the proceedings are consolidated:

It therefore is ordered, That a proceeding be, and the same hereby is, instituted pursuant to section 11 (b) (2) of the act directed to American Natural.

It is further ordered, That the proceeding instituted pursuant to section 11 (b) (2) of the act (File No. 59–103) and the proceeding with respect to the application-declaration (File No. 70–3623) filed by American Natural be, and hereby are, consolidated for hearing and disposition.

It is further ordered, That American Natural file with the Secretary of the Commission, on or before the 10th day of December 1957, an answer in the form prescribed by Rule U-25, admitting, denying, or otherwise explaining its position as to each of the allegations set forth in Parts I and II hereof. Such answer may also include a statement as to what steps respondent deems to be necessary or appropriate and is prepared to take to ensure that the system's corporate structure is not unduly or unnecessarily complicated and that voting power is not unfairly and inequitably distributed among the system's security holders.

It is further ordered, Pursuant to the applicable provisions of the act, that the hearing in the consolidated proceedings be held at the offices of the Securities and Exchange Commission, 425 Second Street NW., Washington 25, D. C. on December 17, 1957, at 10:00 a. m. The hearing on said application-declaration of American Natural previously fixed for November 19, 1957, is hereby continued to December 17, 1957, and the final date for filing requests for leave to be heard, previously fixed at November 15, 1957 is hereby extended to December 13, 1957. On December 17, 1957 the hearing room clerk in Room 193 will advise as to the room where such hearing will be held.

It is further ordered, That any person desiring to be heard in connection with these consolidated proceedings or proposing to intervene herein shall file with the Secretary of this Commission, not later than December 13, 1957, his request or application therefor, as prescribed by Rule XVII of the Commission's rules of practice. Such request shall set forth the nature of the applicant's interest in the proceeding, his reasons for requesting to be heard or to intervene, which of the allegations set forth above and the issues specified below the applicant proposes to controvert, together with a statement of any additional issues which the applicant proposes to raise with respect to this proceeding.

IV. The Division having further advised the Commission that, upon the basis of its preliminary examination of the corporate structure of the American Natural holding company system and the facts otherwise disclosed in the course thereof, the following matters and questions are presented for consideration, without prejudice to the specifying of additional matters and questions upon further examination:

1. Whether the continued existence of the 6 percent cumulative, $25 par value, non-redeemable preferred stock of American Natural in the corporate structure of the American Natural holding company system unduly or unnecessarily complicates such structure or unfairly and inequitably distributes voting power among the security holders of the American Natural holding company system.

2. What steps are necessary to be taken by American Natural to ensure that the corporate structure is not unduly or unnecessarily complicated and voting power

is not unfairly and inequitably distributed among the security holders of its system.

It is further ordered, That particular attention be directed at said consolidated hearing to the foregoing matters and questions and, in addition, to the matters and questions set forth for consideration in the Order for Hearing (Holding Company Act Release No. 13565 (October 18, 1957)) in respect of the application-declaration (File No. 70-3623) filed by American Natural.

It is further ordered, That James G. Ewell or any other officer or officers of this Commission designated by it for that purpose shall preside at the hearing in such matter. The hearing officer so designated to preside at such hearing is hereby authorized to exercise all powers granted to this Commission under section 18 (c) of the act and to a hearing officer under the Commission's rules of practice.

It is further ordered, That jurisdiction be, and hereby is, reserved to separate, either for hearing, in whole or in part, or for disposition, in whole or in part, any of the issues or questions which may arise in these proceedings and to take such other action as may appear necessary or appropriate to the orderly and economical dispostion of the matters involved.

It is further ordered, That American Natural shall give notice of this hearing to all of the holders of its $25 par value, 6 percent, non-redeemable cumulative preferred stock (insofar as the identity of such stockholders is known or available to it) by mailing to each such security holder at his last known address a copy of this Notice and Order at least twenty (20) days prior to the date of the hearing.

By the Commission.

[SEAL] ORVAL L. DUBOIS,
Secretary.

[F. R. Doc. 57-9718; Filed, Nov. 22, 1957; 8:52 a. m.]